NUMALIGARH REFINERY LIMITED
A GOVERNMENT OF INDIA ENTERPRISE

NRL Invites online bids through GeM Portal in two-part bid (Part-I: Techno-Commercial part & Part-II: Priced part) from eligible bidders as per the Scope of supply mentioned in the tender document. Corrigendum / addendum (if any) shall be published in GeM Portal Only. Bids received by way of post, courier, fax, telegram, or email or in open condition shall not be considered.

| **Domestic Competitive Bidding (GeM)** | |
|---|---|
| **NRL Tender Ref. No.** | PUR1011567 |
| **E-File ref.** | PUR-ELECMNT-1011567 |
| **Job Name** | Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27 |
| **Contact Person for the tender** | For Commercial Related Matters:<br>To: Yuv Jyoti Hazarika<br>Designation: Manager (Commercial)<br>Email: yuv.hazarika@nrl.co.in<br>Mob: 9707216816<br>For Technical Related Matters:<br>To: Alok Kumar<br>Designation: AM (Electrical)<br>Email: alok.kumar@nrl.co.in<br>Mob: 8729952766 |

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Prepared & issued by
**NUMALIGARH REFINERY LIMITED**
(A Govt. of India Enterprise)

*Signed & Sealed by Authorised Signatory of bidder*

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# A. CHECKLIST FOR DOCUMENT SUBMISSION WITH UNPRICED OFFER

| SN | Document/Annexure | Applicability |
|---|---|---|
| 1 | Documents in support of PQC<br>Including Bidder Experience Details - **Refer Annexure 2.1** | Applicable |
| 2 | Duly signed & Sealed Technical Specification, Datasheet and any other documents in support of Technical Specification (if any) | Applicable |
| 3 | Agreed Terms & Conditions (ATC) – Duly filled, signed & sealed by authorised signatory on each page of the document. | Applicable |
| 4 | Bidder Details – **Refer Annexure 2** | Applicable |
| 5 | Self-Declaration of Debarment / Blacklisting / Holiday listing – **Refer Annexure 8** | Applicable |
| 6 | Self-Declaration of Conflict-of-interest free bid – **Refer Annexure 9** | Applicable |
| 7 | Indemnity Bond cum Undertaking – **Refer Annexure 10** | Applicable |
| 8 | Special tender clause on procurement from a bidder from a country which shares land border with India – **Refer Annexure 6**<br><br>Form A: Certificate of Compliance – **Refer Annexure 6.1** | Applicable |
| 9 | Policy for providing preference to domestically manufactured iron & steel products in Government Procurement (DMI&SP)– Revised May 2025 – **Refer Annexure 5**<br><br>**<u>In case Bidder's Quoted Price (Item wise basis) is more than INR 5 lakhs.</u>**<br><br>Following declaration need to be submitted.<br><br>Form 1: Format for Affidavit of Self Certification regarding Domestic Value Addition in Iron & Steel Products/capital goods (To be provided on Rs. 100/- Stamp Paper). - **Refer Annexure 5.1.**<br><br>OR<br><br>**<u>In case Bidder's Quoted Price (Item wise basis) is less than INR 5 lakhs.</u>**<br><br>Following declaration need to be submitted.<br><br>8.1 Declaration of Non- Applicability of DMISP Policy (To be submitted in Bidder's letter head) - **Refer Annexure 5.2.** | Not Applicable |
| 10 | NRL's Policy for Micro and Small Enterprises (MSEs) & Start- Ups- **Refer Annexure 3**<br>a) UDYAM Registration certificate<br>b) Manufacturer declaration in Agreed Terms & Conditions. | Applicable |
| 11 | Policy to provide Purchase Preference linked with Local Content (PP-LC) under Make in India (PPP-MII)- **Refer Annexure 4.**<br><br>a) Format 2A : Declaration/ Undertaking for availing purchase preference under PP-LC Policy. (*Format attached in Annexure 4.1)*<br>b) Format 2AA : Format for calculation of Local Content in Goods. (*Format attached in Annexure 4.2)*<br>c) Format 2B : Certification by statutory auditor / cost auditor / practising cost accountant /practising chartered towards local content. (*Format attached in Annexure 4.3)* | a) Not Applicable<br><br>b) Not Applicable<br><br>c) Not Applicable<br><br>d) Not Applicable |

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| | d) Format 2C : Declaration/ Undertaking for availing purchase preference under PP-LC Policy. (*Format attached in Annexure 4.4)* | |
| 12 | Integrity in Public Procurement– **Refer Annexure 7**<br>Annexure 7.2 & 7.2.1 — Code of Integrity & Format for declaration by the Bidder for Code of Integrity (Tender below 1 Cr) | Applicable |
| | Annexure 7.1 — Integrity Pact (Tender Above 1 Cr) | Not Applicable |
| 13 | Settlement of Disputes **-Refer Annexure 12** | Applicable |
| 14 | Valid Power of Attorney in the name of signatory of bid | Applicable |
| 15 | Any other relevant documents as per requirement of the tender | Applicable |

**Note:**

- The bidder shall submit the documents **as per enclosed formats** only (Without tempering any clause/word mentioned therein).
- The bidder shall submit the documents **Duly Sealed and signed by authorized signatory and in official letterhead (**wherever applicable).
- NRL may treat a bid as incomplete if it is not accompanied by above documents as per requirement of the tender (as mentioned above) and may reject such bid without providing any opportunity to the bidder to submit shortfall documents.

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## B. PRE-QUALIFICATION CRITERIA (PQC)

Participating bidders for the tender shall meet all the qualification criteria given as below:

1. The bidder shall be either Manufacturer (OEM) of the offered Flameproof (FLP) electrical items,(OR) Authorized Dealer / Distributor of such manufacturer. The following documents shall be submitted:
   - The OEM shall possess ISO 9001:2015 Quality Management System certification for design and manufacture of explosion-proof / flameproof electrical equipment.
   - In case the bidder is an authorized dealer, a valid authorization letter issued by the OEM specifically authorizing the bidder to quote for this tender shall be submitted along with the bid.
   - The authorization shall confirm that the OEM will provide warranty support, technical assistance, and availability of spares for the offered products

   2. The offered items shall be suitable for installation in hazardous areas and shall comply with the applicable standards of the IS/IEC 60079. The PESO certificate (or related test certificate) submitted shall clearly indicate the model number of the offered item, and the same certified model shall be supplied. The fittings shall be suitable for Gas Group IIC hazardous areas.
   3. The bidder (OEM or authorized dealer) must have experience in successfully supply of Flameproof (FLP) Lighting Fixtures or FLP exhaust fans or FLP plugs. The supply experience shall be in hazardous process industries where explosion-proof electrical equipment is required, such as Oil Refineries or Petrochemical Plants or Oil & Gas Processing Facilities/LPG /LNG Terminals/Gas Processing Plants/Fertilizer Plants. Documentary evidence shall be submitted in the form of:
   - Copy of Purchase Orders, and
   - Delivery Challans/ Payment Invoices/Completion Certificates/ Supply Confirmation from client

**Note to bidders:**

(i) Failure on the part of bidder in submitting the proper documents as proof of meeting pre-qualification of the tender along with unpriced offer and/or submitting incomplete/forged data may lead to rejection of bidder's offer without intimation.

(ii) Notwithstanding any other condition / provision in the tender documents, bidders are required to submit complete documents pertaining to Pre-Qualification Criteria (PQC) along with their Bid. Evaluation may be completed based on the content of the Bid itself without seeking any subsequent additional information, which may result in rejection of Bid.

(iii) NRL at its discretion, may request bidder in writing, to submit the necessary information or documentation, within a reasonable period of time, to withdraw deviation, reservation, or rectify omission in the bid related to documentation requirements. If the tenderer does not comply or respond by the specified date, his tender will be liable to be rejected. No change in prices or substance of the bid shall be sought, offered or permitted. No post-bid clarification at the initiative of the bidder shall be entertained. If sought, the bidders can submit only the shortfall information/documents which pre-existed at the time of the tender opening and which have not undergone change since then.

(iv) So far as the submission of documents w.r.t. Pre-Qualification Criteria (PQC), after opening of the tenders is concerned, only related shortfall documents may be asked for and considered by NRL [For example, if the bidder has submitted a contract without its completion certificate, the certificate can be asked for and considered. However, no other contract (which was not enclosed or referred in their original Bid), shall be asked for so as to qualify the bidder]. That is, the bidder shall not be allowed to submit new references or documents w.r.t. PQC, which were neither enclosed nor referred to in their original Bid. If the bidder cites any reference of a job executed for NRL in their original Bid and the bidder is not able to furnish documentary evidence, the internal records of NRL shall be considered.

(v) NRL adopts a practice to verify documents submitted by L1 (successful) bidder in support of bidder's credential against PQC. Authentication may be verified with the issuing authorities, by way of direct communication to NRL over official e-mail IDs / Original letter of authentication by post. Bidders may also follow up with the issuing authority to elicit an early response. If documents remain unauthenticated till given timeline, NRL reserves the right to reject the bid. A proper address for communication, including e-mail ID of the issuing authority should be provided along the tender document.

(vi) **Disqualification**: Even if an applicant meets the eligibility criteria and PQC, he shall be subject to disqualification if he (or any of the constituent partners in case of JV / Consortium / LLP) is found to have:

- ❖ Made misleading or false representations in the forms, statements, affidavits and attachments submitted in proof of the qualification requirements; and/ or;
- ❖ On account of currency of debarment by NRL/MOPNG.

(vii) **Contentions and Disputes**: The PQC shall be interpreted on common usage of terminologies and phrases in this tender instead of legalistic and hair-splitting judgements and NRL's decision in this regard would be final. Hair-splitting, contentious or viciously legalistic interpretations of PQC criteria, disregarding the very rationale of the PQC shall not be entertained.

(viii) In a tender, either the agent on behalf of the Principal/OEM or Principal/OEM itself can bid but both cannot bid simultaneously for the same item/product in the same tender. For this tender, in case offers are submitted by manufacturers (OEM/ Principals) directly, the offers corresponding of dealers shall be rejected without any further communication.

(ix) Bidders are requested to upload/mention their VALID GSTIN/UIN / PAN Certificate / GSTIN Number along with the Bid Document. NRL at its discretion may not consider the bidder's bid for further evaluation if the same is not found uploaded with the bid or not found to be valid in GST portal. Any misinterpretation or misinformation may attract penal action including putting the bidder on holiday / blacklisting as per rules in vogue at NRL.

(x) Bid Submitted on Consortium & joint ventures basis is not acceptable for this tender

## C. AGREED TERMS AND CONDITIONS (ATC)

*"Duly filled, signed & stamped copy of this pre-filled "questionnaire / ATC" along with required certificates / declarations shall be enclosed with bidder's unpriced bid without any deviations. Submitting incomplete replies may lead to rejection of bidder's quotation".*

**NRL Tender No:** PUR1011567

| SN | Terms & Conditions of the tender | Bidder's compliance |
|---|---|---|
| 1 | **Submission of Bid:**<br>Valid Power of Attorney in the name / details of signatory of bid needs to be furnished with unpriced offer.<br>*Power of Attorney to be issued by the bidder in favour of the authorised employee(s), for purpose of signing the documents including bid, all subsequent communications, agreements, documents etc. pertaining to the tender/tender(s) and to act and take any and all decision on behalf of the bidder. Any consequence resulting due to such signing shall be binding on the Bidder. The Power of Attorney shall be issued as per the constitution of the bidder as follows: -*<br>*a) In case of Proprietorship: by Proprietor.*<br>*b) In case of Partnership: by all Partners or Managing Partner.*<br>*c) In case of Limited Liability Partnership: by any bidder's employee authorized in terms of Deed of LLP.*<br>*d) In case of Public / Limited Company: Power of Attorney in favour of authorized employee(s) by Board of Directors through Board Resolution or by the designated officer authorized by Board to do so. Such Board Resolution should be duly countersigned by Company Secretary / MD / CMD / CEO.*<br>*The Power of Attorney should be valid till award of contract / order to successful Bidder.* | Noted & confirmed |
| 2 | **Contract performance Security (CPS):** Applicable<br>The Contract performance security (CPS) shall be **3% of the GeM Contract value** (*as indicated in e-BG field in the GeM tender*) to be submitted by successful bidder within 10 days of GeM Contract placement / award.<br>This shall be submitted in the CPS format or an Insurance Surety Bond (ISB) format attached or through as annexure with this tender or online transfer to the designated bank account of NRL. (Refer Annexures section)<br>CPS should remain valid for a period of 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee period (if any).<br>*Failure in submission of CPS on the part of the successful bidder may lead to* ***breach of contractual obligations, termination of the award and subsequent holiday listing*** *as per NRL policy, as applicable.*<br>For details on submission of CPS, kindly refer Clause 29(A) of attached NRL GPC (General Purchase conditions -2024). | Noted & confirmed |
| 3 | **Warranty Bank Guarantee (WBG):** Applicable<br>The ***Warranty Bank Guarantee (WBG) shall be 7% (in addition to CPS)*** of the GeM Contract value to be submitted by the successful bidder.<br>***Warranty Bank Guarantee (in addition to CPS)*** is required to be submitted in the prescribed format (attached in annexure), in the currency of the contract, valid for 03 (three) months beyond the Guarantee/Warranty period.<br>***Further, contractor may at his option submit a Contract Performance Security (CPS) covering also the WBG value (where WBG is applicable), valid for a period*** | Noted & confirmed |

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| | ***of 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee period (if any) – in which case, he will not be required to submit a BG for Warranty.***<br><br>In case WBG is not provided by the vendor, equivalent amount shall be kept on hold from his first payment [or subsequent payment(s), if insufficient from first payment] in lieu of Warranty Bank Guarantee (WBG).<br><br>All compensation or other sums of money payable by the contractor to the owner under terms of the contract may be deducted from or paid by the encashment of a sufficient part of his WBG (and CPS) or from any sums which may be due or may become due to the contractor by the NRL. *No interest shall be payable by the owner for the sum deposited as CPS or WBG*. The CPS and/or WBG amounts will be refunded to the contractor without interest, after he duly performs and completes all obligations under the contract including the warranty period. | |
| 4 | **Delayed Delivery & Liquidated Damages**<br>The inability of vendors to execute orders in accordance with the agreed/quoted delivery schedule will entitle NRL, at its options, to:<br>a) While granting extension of the delivery period, where the delivery of goods or any part thereof is accepted after expiry of the original delivery period, NRL may recover from the vendor, the LD a sum equivalent to 0.5% (half percent) per week or part thereof of delay. The total liquidated damages shall not exceed 5% (five percent) of the total value of the goods.<br>However, if delivery of goods (including installation & commissioning) in a staggered/splitable manner is possible and permissible, then, the LD imposed would be on the value of the portion of the delayed goods.<br>If the contract involves assembling/ integration/ commissioning of all the ordered goods to get the desired product/output, then, the LD imposed would be on the total order value of goods.<br>Compensation for loss on account of late delivery (actually incurred as well as notional) where loss is pre-estimated is termed as LD. There is no need to establish actual loss due to late delivery. Price reduction clause (PRC) for late delivery shall convey the same meaning as Liquidated Damages (LD).<br>Where any delay in delivery is due to default by the seller/contractor, any increase in statutory duties and/or upward rise in prices due to the price variation clause (PVC) and/or any adverse fluctuation in foreign exchange during the extended/delayed delivery period are to be borne by the seller/contractor. This will be over and above levy of LD/PRC. However, the purchaser reserves his right to get any benefit of a downward revisions in statutory duties, PVC and foreign exchange rate during the extended/delayed delivery period. Thus, PVC, other variations and foreign exchange clauses operate only during the original delivery period.<br>b) Cancel the order in part or full and purchase such cancelled quantities from elsewhere on account at the risk and cost of the vendor, without prejudice to its right as mentioned above in respect of goods delivered.<br>**Note**<br>❖ In case of package items (ordered as a complete system), the price reduction for delayed delivery shall be applicable on the entire order value of that package and not on the value of the undelivered portions (even though a billing breakup has been approved).<br>❖ In case of purchase of bulk items where tolerance limit is specified (e.g. pipes, cables etc.), price reduction clause shall be applicable on the actual quantity | Noted & confirmed |

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| | supplied, within the tolerance limit, instead of Purchase Order quantity.<br><br>Prior approval from NRL to be taken if the party plans to deliver the material in parts / partial shipment basis in case the same is not clearly mentioned as allowable in the Purchase Order. | |
| 5 | **Payment Term**<br><br>Unless otherwise specified in Technical/Buyer Specification, payment term shall be as follows:<br><br>100 % payment within 30 days after receipt of material at site and after inspection clearance subject to submission of CPS and WBG as applicable.<br><br>**Note:**<br><br>a) *Bidders to note that NRL shall release all payments through e-payment mode (RTGS / NEFT) only and not through any other mode.*<br>b) *An amount equivalent to the extent of eligible Input Tax Credit (ITC) available to NRL on each invoice shall be released only upon reflection of corresponding invoice and Input Tax Credit details in GSTR-2B report relating to NRL in GST portal. In other words, GST component eligible for Input Tax Credit, of any invoice shall be withheld till such time same is reflected in GSTR-2B.*<br>c) *Govt. has reduced the aggregate turnover for applicability of E-invoices from earlier limit Rs.10 crores to Rs.5 crores, which is effective from 1st August'2023. In view above, all concerns are requested to raise only E-invoice to NRL with all requisite details like IRN, QR code etc. Non-complied invoices shall not be accepted for further processing.*<br>d) *For payment administration or issues related to clearance of Tax Invoices, contractors/suppliers may send their request / query etc. to the e-mail ID: livdesk@nrl.co.in .*<br>e) ***Trade Receivables Discounting System (TReDS):** Interested bidders are requested to on-board their firm in the TReDS platform and may communicate to NRL in order to avail the facilities that the portal provides.* | Noted & confirmed |
| 6 | **Third Party Inspection (TPI):** Applicable<br><br>May refer to Technical Specification/Buyer specification document for NRL recommended/preferred TPI agency (if any) and for other relevant details.<br><br>(Under NRL scope) | Noted & confirmed |
| 7 | **Guarantee/ Warranty**: Applicable<br><br>If Applicable, unless otherwise specified in Technical/Buyer Specification, Guarantee/ Warranty shall be as follows:<br><br>Materials shall be guaranteed against manufacturing defects, materials, workmanship and design for a period of 12 months from the date of commissioning or 18 months from the date of last dispatch whichever is earlier. Warranty for replacement of material/ accessories should be provided free of charges at our premises. The above guarantee/warranty will be without prejudice to the certificate of inspection or material receipt note issued by us in respect of the materials.<br><br>All the materials including components and sub-contracted items should be guaranteed by the vendor within the warranty period mentioned above. In the event of any defect in the material, the vendor will replace / repair the material at NRL's concerned location at vendor's risk and cost on due notice.<br><br>In case, vendor does not replace / repair the material on due notice, rejected material will be sent to the vendor on "Freight to pay" basis for free replacement. Material after rectification of defects shall be dispatched by the vendor on "Freight Paid" basis. Alternatively, NRL reserves the right to have | Noted & confirmed |

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<tr><td></td><td>the material repaired / replaced at the locations concerned, at the vendor's risk, cost and responsibility.<br>The Vendor shall provide similar warrantee on the parts, components, fittings, accessories etc. so repaired and / or replaced.<br>The replacement goods/services shall follow the same Quality Assurance Plan.</td><td></td></tr>
<tr><td>8</td><td>Qty Tolerance: Not Applicable<br>For items like Structural Steel, Plates, Tor Steel, Cement, Bulk Chemical 5% qty tolerance by weight and for Cable and Pipe materials 5% qty tolerance by length shall be permissible. Payment will be made on actuals within the tolerance limit.</td><td>Noted & confirmed</td></tr>
<tr><td>9</td><td>Dispatch & Invoice details<br>Bidders are requested to furnish following information:
<table>
<tr><th>SN</th><th>Sought Information</th><th>Bidder’s response</th></tr>
<tr><td>a</td><td>Mode of dispatch<br>(By Road/Rail/Air)</td><td></td></tr>
<tr><td>b</td><td>Dispatch point of goods<br>(Name of the place with State & PIN)</td><td></td></tr>
<tr><td>c</td><td>GSTIN<br>(of Invoicing State)</td><td></td></tr>
<tr><td>d</td><td>Applicable GST %<br>(In case of multiple items, may use separate sheet, if required)</td><td></td></tr>
</table></td><td>Noted & confirmed</td></tr>
<tr><td>10</td><td>Purchase Preference for MSEs: Applicable<br>Bidder to note that, in order to avail benefit under the policy, the bidder must submit UDYAM registration certificate in relevant section of GeM, as per its provision, failing which, purchase preference shall not be granted.<br>Additionally, bidders are required to confirm following:<br>a) Please confirm the relevant NIC Code of the offered Goods (As mentioned in the submitted UDYAM certificate)<br>_____<br>b) Mention the UDYAM No.<br>_____</td><td>Noted & confirmed</td></tr>
<tr><td>11</td><td>Purchase Preference Policy linked with Local Content (PP-LC): Not Applicable<br>Bidder to note that, in order to avail benefit under the policy, the bidder must apply in relevant section of GeM, as per its provision, failing to which, purchase preference shall not be granted.<br>However, to avail the benefit, following additional documents (whichever is/are applicable) are to be submitted along with unpriced offers. (Refer Checklist for applicability of following document)<br>a) Form 2A - Not Applicable</td><td>Noted & confirmed</td></tr>
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| | b) Form 2AA - Not Applicable<br>c) Form 2B - **Not Applicable**<br>d) Form 2C - Not Applicable | |
| 12 | **Policy for providing preference to domestically manufactured iron & steel products in Government Procurement – Revised May 2025:** Not Applicable<br>Please refer the above policy and further amendments time to time as published on website of Ministry of Steel for providing preference to Domestically Manufactured Iron & Steel Products in Government procurement. The policy and its amendments from time to time can also be accessed from the link given below and same is also given with tender annexures:<br>https://steel.gov.in/policy-providing-preference-domestically<br>Domestic manufacturers of products under Appendix-A (of the policy) shall self-certify the local content as per Form-1 placed in the policy, at the time of bidding.<br>*In case Bidder's Quoted Price (Item wise basis) is more than INR 5 lakhs, Bidder should comply with the Domestically Manufactured Iron & Steel Policy (DMI&SP) for the Iron & Steel products involved in execution of the contract. Bidder shall submit affidavit of such Iron & Steel products as per the Format enclosed as Form-1 (Refer Annexure 5.1).*<br>*If Bidder's Quoted Price (Item wise basis) is lower than the threshold value of INR 5 Lakhs, Bidder shall submit a "Declaration of Non-Applicability of DMISP Policy" as per Annexure 5.2. In case, at any stage before or after award, if Price of any of the quoted item is found more than INR 5 Lakhs, it shall be construed as the false/wrong declaration and Penal action shall be initiated against the Bidder as per provision of Bidding Document. If such a supplier/ agency happens to be the lowest bidder during price evaluation, the next lowest bidder shall be considered as L1.*<br>*For the purpose of this Policy, the threshold value INR 5 lakhs shall be considered on Item wise basis excluding GST & freight. In all cases where evaluation is on bottom line basis for each individual group, threshold value shall be considered on the basis of individual item of the respective group.*<br>*Bidders who are selling agents / authorized distributors / authorized dealers/authorized supply houses of the domestic manufacturers of iron & steel products, covered by Appendix-A, are eligible to bid with self-certification on behalf of the domestic manufacturers under the policy, subject to the bidder furnishing an authorisation certificate issued by the domestic manufacturer at the time of delivery.*<br>*If a bidder does not submit above affidavit or undertaking as per format, the offer of bidder shall be rejected.*<br>With reference to the above, Bidder is requested to submit "Affidavit of Self Certification" as per "Form-1" along with the techno-commercial bid (Format is appended with this Bid Document). Bids shall be liable for rejection in case of non-Submission of this Affidavit. | Noted & confirmed |
| 13 | **Self-declaration for not being under liquidation, court receivership or similar proceedings**<br>I/We herewith declare that we are not under liquidation, court receivership or similar proceedings. | Noted & confirmed |
| 14 | **Bid Rejection Criteria (BRC)**<br>Notwithstanding the above, deviation to the following clauses of Tender Document (and subsequent corrigendum/addendum, if any) shall lead to summarily rejection of Bid:<br>• Firm Price (Wherever applicable)<br>• Earnest Money Deposit (Bid Security) / Bid Security Declaration / Proof | Noted & confirmed |

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| | of Exemption (As applicable)<br>• Specifications & Scope of Work<br>• Schedule of Rates / Price Schedule / Price Basis<br>• Duration/Period of Contract / Completion schedule/Delivery Period<br>• Payment Term<br>• Period of Validity of Bid<br>• Price Reduction Schedule / Liquidated Damages<br>• Contract Performance Security (Wherever applicable)<br>• Warranty / Guarantee / Defect Liability Clauses and Security Deposit, if applicable (Wherever applicable)<br>• Clause on Settlement of Disputes – Arbitration / Mediation / Jurisdiction of Court (Unless agreed by NRL at the tendering stage itself)<br>• Force Majeure & Applicable Laws<br>• Integrity Pact, if Applicable<br>• Any other condition(s) specifically mentioned in the Tender Document elsewhere, that non-compliance of the clause will lead to rejection of Bid. | |
| 15 | **Zero Deviation Tender:**<br>This enquiry has been issued as "zero deviation bidding" basis. Prospective Bidders must submit their offer complete in all respect and must contain confirmations/ compliance to all techno-commercial points without any deviation. However, any techno-commercial clarification may be sought before submission of the bid. | Noted & confirmed |
| 16 | **Right to Reject any or all Bids**<br>NRL reserves the unfettered right to reject any or all offers without assigning any reasons thereof. | Noted & confirmed |
| 17 | **Holiday Listing Policy**<br>All bidders are requested to refer to the revised Holiday Listing Policy of NRL made effective from 26.05.2025, available in NRL Website www.nrl.co.in > Tenders > Download Manuals > Holiday Listing Policy (w.e.f. 26.05.2025). It may be noted that NRL's policy for holiday listing/ banning/ debarring of contractors/ suppliers, as prevailing on the date of issue of the show-cause notice, shall be applicable. For updated holiday listing policy, the NRL website www.nrl.co.in shall be referred. | Noted & confirmed |
| 18 | **Personal Protective Equipment Guidelines**<br>Contractors / suppliers and their concerned persons / workmen engaged for execution of works / services / deliveries / installation / commissioning / testing or any other activity in various operational and non-operational work areas must adhere to the "Personal Protective Equipment (PPE) Policy and Guidelines of NRL".<br>The Personal Protective Equipment (PPE) Policy and Guidelines of NRL is available in NRL Website www.nrl.co.in >Tenders > Download Manuals > Personal Protective Equipment (PPE) Policy and Guidelines of NRL (Rev-01; 08-10-2024). | Noted & confirmed |
| 19 | **Bid Security Declaration (for all bidders):**<br>Bidders must submit a Bid Security Declaration as per format enclosed as **Annexure-14.1** on Bidder's Letterhead in lieu of Earnest Money Deposit (EMD). This declaration must be submitted by all bidders IRRESPECTIVE OF ELIGIBILITY for any exemption from EMD that may be applicable (as per stated policy). | Noted & confirmed |
| 20 | **Important Terms & Conditions:**<br>(i) Printed terms and conditions, if any, submitted with the quotation shall be ignored and shall not be applicable in the event of order. In case of contradiction between the confirmations given above and terms & conditions mentioned elsewhere in the offer, the confirmation given herein above shall prevail.<br>(ii) All other terms and conditions shall be as per NRL's General Purchase Conditions (Indigenous) 2024-latest version. (attached in the tender or may | Noted & confirmed |

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| | find in below link)<br>https://www.nrl.co.in/upload/nrlGeneral_Purchase_Conditions_Indigenous_09092024.pdf<br>(iii) NRL reserves the unfettered right to reject any or all offers without assigning any reasons thereof.<br>(iv) NRL reserves the unfettered right to terminate the order (after placement of contract) within the contractual period without assigning any reasons thereof by serving one-month advance notice. The supplier shall not be entitled to any compensation whatsoever because of such termination, nor shall NRL be liable for any claims or damages on such account.<br>(v) Further, NRL may also decide to short close the PO in case the performance of product is not found to be satisfactory / not in line with the performance during the Bid evaluation.<br>(vi) NRL may treat a bid as incomplete if it is not accompanied by documents as per requirement of the tender and may reject such bid without providing any opportunity to the bidder to submit shortfall documents. | |

**Note to Bidder:**

1. *Although the details presented in this Bidding document consisting of Conditions of Contract, Scope of Work, Technical Specifications and Drawings which have been compiled with all reasonable care, it is the Bidder's responsibility to ensure that the information provided is adequate and clearly understood.*
2. *Clarification on bidding conditions / terms:*

   a) *Bidder shall examine the Bidding document thoroughly in all respect and if any conflict, discrepancy, ambiguity, error or omission is observed, Bidder may request information/ clarification of the Bidding Document in writing through E-mail or GeM portal not later than 07 days prior to the last date for submission of bids mentioned above.*

   (b) *Where there is disqualification of bidder on non-meeting techno-commercial requirement bidder may submit any representation within 48 hours from the date of uploading technical recommendation (TR). NRL may respond in writing to any request for any information or clarification or query on the bidding conditions, bidding process and/or rejection of its bid - directly to the concerned bidder or by publishing in the e-tendering portal - depending on the nature & content of the information/clarification sought.*
3. *Any failure by Bidder to comply with the aforesaid requirement shall not excuse the Bidder, after subsequent award of contract, from performing the work in accordance with the contract.*
4. *Bidders are requested to resolve all their clarifications/queries to the Bidding Document before submission of bid and submit their .*
5. *The responses to Bidder's queries/ clarifications raised will be furnished as expeditiously as possible in the form of Corrigendum/Addendum. Any modification of the Bidding Document, which may become necessary because of the bidder's query, or for any reason at NRL's initiative, shall be published as a Corrigendum /Addendum which shall form a part of the Bidding document. Bidder shall submit a copy of all the Corrigendum/Addendum duly signed and stamped in token of his acceptance. Bidder shall consider its impact in his bid / submit revised bid within the last bid submission date & time. Bids submitted without all Corrigendum/Addendum are liable to be rejected.*

Signature of Bidder's Authorized Signatory :
Name of Authorized Signatory with Designation:
Name of Bidding Firm / Company / Agency:
Company Seal:

*Signed & Sealed by Authorised Signatory of bidder*

## D. TENDER ANNEXURES

**Annexure lists:**

| Number | Short Description |
|---|---|
| Annexure 1 | Instructions to Bidders (ITB) |
| Annexure 2 | Bidder details |
| Annexure 2.1 | Past Track record/Experience details (PTR) |
| Annexure 2.2 | Annual turnover in last 3 years |
| Annexure 2.3 | Concurrent commitments |
| Annexure 2.6 | Deviation Statement |
| Annexure 2.6.1 | Format: Exceptions And Deviations |
| Annexure 3 | Policy for Micro & Small Enterprises (MSEs) & Start-Ups |
| Annexure 3.2 | Format: Undertaking and reference of being Manufacturer |
| Annexure 6 | Policy regarding Sharing of land border with India |
| Annexure 6.1 | Form A: Certificate of Compliance (on letter head) |
| Annexure 7.2 | Code of Integrity |
| Annexure 7.2.1 | Format: Declaration by the Bidder for Code of Integrity (on letter head) |
| Annexure 8 | Self-Declaration of Debarment / Blacklisting / Holiday listing and Allied Firms |
| Annexure 9 | Self-Declaration of Conflict-of-interest free bid |
| Annexure 10 | Indemnity bond cum undertaking regarding GST (on letter head) |
| Annexure 11 | Compliance to Tender (on letter head) |
| Annexure 12 | Settlement of Disputes |
| Annexure 14 | Instructions: ONLINE EMD submission |
| Annexure 14.1 | Bid Security Declaration |
| Annexure 15 | Instructions: Bank Guarantee (BG) Submission |
| Annexure 15.2 | Format: Bank Guarantee for Contract Performance Security |
| Annexure 15.4 | Format: Bank Guarantee for Indigenous Purchase (Warranty/Guarantee) |
| Annexure 16 | Instructions: Insurance Surety Bond |
| Annexure 16.2 | Format: Surety Bond for Contract Performance Security |
| Annexure 18 | NRL GPC (Indigenous) 2024 |

### Annexures Not Applicable for this Tender

| Number | Short Description |
|---|---|
| *Annexure 2.4* | *Declaration of Equipment tools & tackles* |
| *Annexure 2.5* | *Proposed site organogram* |
| *Annexure 3.1* | *Format: Undertaking of being Service Provider* |
| *Annexure 4* | *Policy for Purchase Preference linked with Local Content (PP-LC) under Make in India (PPP-MII)* |
| *Annexure 4.1* | *Format 2A: Declaration/ Undertaking for availing purchase preference under PP-LC Policy* |
| *Annexure 4.2* | *Format 2AA: Format for calculation of Local Content in Goods* |
| *Annexure 4.3* | *Format 2B: Certification by statutory auditor / cost auditor / practicing cost* |

| | |
|---|---|
| | *accountant / practicing chartered towards local content.* |
| *Annexure 4.4* | *Format 2C: Declaration of Minimum Local Content (item wise)* |
| *Annexure 5* | *Policy for providing preference to domestically manufactured iron & steel products in Government Procurement (DMI&SP)– Revised 2025.* |
| *Annexure 5.1* | *Form 1: Format for Affidavit of Self Certification regarding Domestic Value Addition in Iron & Steel Products/capital goods (To be provided on Rs. 100/- Stamp Paper).* |
| *Annexure 5.2* | *Declaration of Non-Applicability of DMISP Policy (on letter head)* |
| *Annexure 7.1* | *Integrity Pact* |
| *Annexure 13* | *Signing & Stamping of Contract* |
| *Annexure 15.1* | *Format: Bank Guarantee for Earnest Money Deposit* |
| *Annexure 15.3* | *Format: Bank Guarantee for Security Deposit* |
| *Annexure 15.5* | *Format: Bank Guarantee against Advance Payments* |
| *Annexure 15.6* | *Format: Bank Guarantee against Milestone Payment* |
| *Annexure 16.1* | *Format: Surety Bond for Earnest Money Deposit* |
| *Annexure 17* | *General Information on Location of Work and Material Delivery* |
| *Annexure 19* | *Schedule Of Rates (SOR)* |
| *Annexure 20* | *Special Conditions of Contract (SCC)* |
| *Annexure 21* | *Technical Specifications* |

**Note to bidders:**

1. Bidders are requested to submit the required annexures, duly filled, signed, and sealed, in accordance with the tender requirements, along with the unpriced offer.
2. Bidder may refer Checklist for applicability of enclosures.

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
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**Annexure 1**

# Instruction To Bidder

## Post Contract Information to Supplier

A. Documents required with consignment for Goods receipt creation:
- Original Tax-Invoice- This is a compulsory document. It would be preferable if either the PO Serial Number or the NRL Item Code were mentioned in the invoice against each item supplied.
- Original E-Way Bill- This is a compulsory document.
- Technical Documents (Applicable as per PO terms & conditions, without which inspection will not be cleared by user even if materials arrive at site). This is an optional document.
- Copy of Consignment Copy- This is a compulsory document provided by the transport driver.

The absence of any of these documents will cause delays in the Goods Receipt (GR) by the warehouse, eventually leading to delays in payments.

B. The E-way bill is to be provided if any of the following three conditions are true:
- The Invoice/ Bill Amount is Rs. 50,000 or more.
- The distance travelled to deliver the consignment is 10 Kms or more.
- The materials are of the GST category.

## Procedure for Return of OSRD (Outstanding Short Rejected & Damaged) goods

A. The return of OSRD goods shall be done based on the details provided in the material inspection report submitted by the user department. The materials will be sent to your facility from our warehouse at the earliest. In this context, the warehouse shall inform your organization of the issue and ask you to collect the materials from NRL at the earliest.

In this context, you will be required to provide us with the following information/ documents required for returning the rejected materials to your facility:
- Valid Work-Email.
- Valid Contact Number.
- Copy of Authorization certificate (on company letterhead) issued to transporter for returning the rejected goods.
- Contact Details of Transporter:
  • Name of Agency (with GSTIN).
  • Name of Driver (With supporting documents).
  • Vehicle details (With supporting documents).
  • Address (with GSTIN) to where the items must be sent.
  • Tentative date of collecting the rejected items from NRL facility (Preferably with one day advance notice).

B. Please note that the freight shall be borne by your organization. Kindly provide all supporting documents in a single pdf attachment at the earliest. The same rules apply in case the materials are collected by Courier Services. In that case, the following information shall have to be provided in advance:
Courier Service Name
Contact Details: Name, Email & Phone No.

## Information for transporter / goods carrier

Kindly share the following details with the driver regarding the rules for gate-pass and material delivery at the warehouse:

A. Vehicles without the following valid documents (for vehicle and driver) shall not be allowed onto the refinery premises, and will be sent back:
   - Driver's License
   - Vehicle Pollution Certificate
   - Vehicle Fitness Certificate
   - Vehicle Insurance Certificate
   - Minimum Personal Protective Equipment (PPE): Industrial Safety Helmet, Industrial Safety Shoes

B. All materials for refinery except those for Numaligarh Refinery Expansion Project (NREP) are to be entered through the MATERIAL GATE near NRMT (Numaligarh Refinery Marketing Terminal) only.
   - Only diesel driven vehicles are allowed inside the refinery premises for the movement of goods. Transporters with any other fuel-driven vehicle will not be allowed.

C. Gate Pass Procedure:
   - The office starts at 8:00 AM and goes up to 4:45 PM.
   - At the MATERIAL GATE CISF office, the driver must call at the following numbers (on the following days of the week) for Gate Pass:
     - Monday: 3624
     - Tuesday: 3646
     - Wednesday: 3640
     - Thursday: 3641
     - Friday: 3639
     - Saturday (2nd & 4th): 3643
     - Saturday (1st & 3rd): Closed
     - Sunday: Closed
   - Warehouse Desk Team: 3638 is to be called for any other problem regarding gate-pass.
   - Material Gate shall remain closed from 1:00 PM to 2:00 PM on all working days.
   - After obtaining Gate Pass the driver must report to the warehouse for unloading of the materials.
   - Please note that once the vehicle has entered the refinery premises, it will be allowed to leave the premises only after unloading is completed. In-case, the unloading is not completed in one day, the vehicle shall remain inside the refinery premises, but the driver must leave the site after official working hours.

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**Annexure 2**

## Bidder Details

| | |
|---|---|
| Name of the Bidder | |
| Address- Registered Office<br><br>*(& website, if available)* | <br><br><br><br>PIN: |
| Address- Place of business<br>(Office from where GST invoice will be raised if different from above) | <br><br><br><br>PIN: |
| Contact Person for bid | Name & designation:<br><br>Email ID:<br><br>Mobile: |
| Nature of Business | |
| Constitution / Legal status | *(Prop. / Co./PSU/Govt etc.)* |
| NRL Vendor Code | *(if available)* |
| PAN | *(mandatory #)* |
| GSTN | *(if registered #)* |
| CIN | *(if available #)* |
| PF regn. | *(if registered #)* |
| ESIC regn. | *(if registered #)* |
| BANK A/C & IFSC | *(##)* |
| UDYAM (MSME) | No. : (*if available #)*<br>Micro ☐ / Small ☐ / Medium ☐<br>Service ☐ / Manufacturing ☐ / Trading ☐ |
| **Authorised Signatory / Attorney** | Name & designation:<br><br>Date:<br>Place : **(SIGNATURE)** |

# Attach copy
## Attach cancelled cheque copy

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
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**Annexure 2.1**

## Past Track Record (PTR)/Experience details

| Sl. No | Description Of Supply | LOA/PO No with Date | Full postal address & phone no. of the client | Order Value | Scheduled Delivery Period | Actual Delivery Period | Remarks |
|---|---|---|---|---|---|---|---|
| (1) | (2) | (3) | (4) | (5) | (6) | (7) | (8) |
| | | | | | | | |
| | | | | | | | |
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| | | | | | | | |

**Name of Bidder**

(Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
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**Annexure 2.2**

## Average Annual Turnover Of Last Three Financial Years

| Sl. No | Financial Year | Turnover | UDIN* |
|---|---|---|---|
| 1 | | | |
| 2 | | | |
| 3 | | | |
| **Average Annual Turnover:** | | | |

* UDIN: **Unique Document Identification Number** for verification of authenticity of the CA certified Details at https://udin.icai.org/search-udin.

*Bidders to submit copies of audited profit & loss account for the last three financial years in support of annual turnovers "or" certification of annual turnovers for the last three financial years from a registered chartered accountant firm. The last three financial years mentioned above refers to immediate three preceding financial years wherever the original last bid submission date is after 31st December. In case of tenders having original last bid submission date up to 31st December and audited / CA certified turnover documents of the preceding financial year is not available, the audited / CA certified turnover documents of the three years prior to preceding financial year will be considered.*

*Note: - The average annual turnover is calculated by adding the turnovers of 03 the specified years, divided by 03. If a Bidder does not submit the aforementioned financial statements for three specified years, then Average Annual Turnover will be calculated based on financial figures of only those specified years for which requisite financial statements are submitted. Turnover will be considered '0' (Zero) for the year(s) for which requisite financial statements are not submitted.*

*Audited Annual Report / financial statements needs to be accompanied with UDIN number, which is mandatory from July 2019 onwards. Any Financial Report which is issued after July 2019 onwards without UDIN shall not be considered for evaluation.*

*ILLUSTRATIVE EXAMPLE:-*

- *If the due date for submission of bid is up to 31.12.2022;* ***Say 31.12.2022 or before*** *you may submit turnover documents for* ***19-20, 20-21, 21-22*** *"OR"* ***18-19, 19-20, 20-21*** *if 21-22 is not yet finalized.*

- *But, if the due date for submission of bid is after 31.12.2022;* ***say 01.01.2023 or after*** *you have to submit turnover documents for* ***19-20, 20-21, 21-22*** *only.*

[*The above is an example only and actual FYs shall depend on the actual due date for submission.*]

**Name of Bidder**

(Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
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**Annexure 2.3**

## Concurrent Commitments

(Bidder to state all their jobs being executed / yet to be complete)

| SN | Full Postal Address of Client & Name of Officer-in-Charge | Description of the work | Value of contract in INR | Scheduled completion period | Date of commencement of work | Expected date of completion | Percentage complete as on date |
|---|---|---|---|---|---|---|---|
| | | | | | | | |
| | | | | | | | |
| | | | | | | | |
| | | | | | | | |
| | | | | | | | |
| | | | | | | | |

**Name of Bidder**

(Signature of the authorized signatory of bidder with stamp, date & place)

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**Annexure 2.6**

## Deviation Statement

Bids not conforming to biding document in totality and / or non-accompanied by necessary documents as asked for in the Bidding Document shall be liable for rejection. Any Bid containing exceptions/deviations shall be liable for rejection.

Deviation, if unavoidable, should be furnished as per Format for Exceptions / Deviations. **Owner shall not take cognizance of any deviation stipulated elsewhere in the Bid and shall be treated as null & void**. In case Bidder stipulates deviations, and there are sufficient Bids without any deviation, Owner shall have the right to reject such Bid at its absolute discretion and without giving any opportunity to such Bidder to make good such deficiency.

Bidder shall not stipulate any conditions in the **PRICE BID**. No stipulation, deviation, terms & conditions, presumption, basis etc. shall be stipulated in the priced bid. Any conditions, if stipulated, shall be treated as null and void and shall render the bid liable for rejection.

NRL will determine whether each bid (i) is accompanied by required EMD, if applicable; (ii) totally comply to the requirement of bidding document. NRL will examine the bids to determine whether they are complete and whether the documents have been properly signed, and whether the bids are generally in order.

During evaluation, if necessary, NRL may obtain clarifications on the Bid by requesting for such information / clarifications from any or all Bidders in writing. All responses shall be in writing, and no change in the price or substance of the bid shall be permitted unless specifically sought by NRL.

Bidders shall however note that no revision in quoted Rates shall be allowed, in case deviations which are not accepted by the Owner and are required to be withdrawn by the bidder in favour of stipulations of the bidding documents. Any price revisions, if stipulated, shall be treated as null and void and shall render the bid liable for rejection.

NRL reserve the right to assess Bidder's capability and capacity to execute the work using in-house information including taking into account other aspects such as concurrent commitments, past performance etc. NRL reserves the right to reject any or all the tenders received without assigning any reason thereof.

**UNSOLICITED POST TENDER MODIFICATIONS**

Bidders are advised to quote strictly as per terms and conditions of the bidding document and not to stipulate any deviations/exceptions. NRL, at its discretion, may request bidder to to withdraw deviation, reservation, or rectify omission in the bid related to documentation requirements. However, once technical bid is opened, the bidder shall not make any subsequent price changes, whether resulting or arising out of any technical / commercial clarifications sought on any deviations or exceptions mentioned in the bid. Similarly, no revision in quoted price shall be allowed should the deviations stipulated by him are not accepted by Owner and are required to be withdrawn by him in favour of stipulation of the bidding document. Any proposed price changes is likely to render the bid liable for rejection. In case of unsolicited price increase, such offer(s) of the Bidders shall be rejected. In case of unsolicited price decrease, the Bidder(s)'s offer shall be compared as per originally quoted prices and if the Bidder happens to be the recommended Bidder, the decrease in prices shall be taken into account for ordering.

Evaluation may be completed based on the content of the Bid itself without seeking any subsequent additional information, which may result in rejection of Bid. However, NRL may, at its discretion, request bidder to submit the necessary information or documentation, within a reasonable period of time, to withdraw deviation, reservation, or rectify omission in the bid related to documentation requirements. Requesting information or documentation on such account shall not be related to any aspect of the price of the Bid. NRL's request for clarification and the response shall be in writing.

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27

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**Annexure 2.6.1**

## Exceptions and Deviations

| Sl. No. | Page no. of Bid Document | Clause No. | Subject | Deviations |
|---|---|---|---|---|
| | | | | |

**NOTE**: All exceptions / deviations taken by the BIDDER to the stipulations of the Bidding Document shall be brought out on this page only. Refer to the instructions and conditions stated above.

**Name of Bidder**

(Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
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**Annexure 3**

## Policy for Micro and Small Enterprises (MSEs) & Start-Ups

**Note to Bidder:** To avail price preference under MSE policy, bidder must apply and submit UDYAM registration certificate as per provision of GeM. Additionally, bidders are required to provide a self-declaration of being manufacturer/OEM of offered items in ATC along with their unpriced offer, failing to which, purchase preference under the policy may not be granted.

**SPECIAL CONDITIONS FOR MICRO AND SMALL ENTERPRISES (MSEs) BIDDERS :**

With reference the Public Procurement Policy for Micro and Small Enterprises (MSEs) Order 2012 notified by the Government under the Micro, Small and Medium Enterprise Development Act, 2006 and subsequent amendments through following notifications:

- Notification S.O. 5670(E), dtd. 9th November, 2018
- Ministry of MSME letter D.O. No. 21(8)/2018-MA dated 13th November, 2018
- MoP&NG letter ref. No. J-25011/35/2016-Gen dated 15th November, 2018
- Gazette Notification no. 2119(E) dated 26.06.2020
- FAQs issued by Development Commissioner (MSME) OM F.No. 1(3)/2018-MA, Part-III dated 25th March, 2022
- DoE OM No. F 1/4/2021-PPD dated 18.05.2023 on concurrent application of PPP-MSE (order 2012) and PPP-MII (order 2017)
- MSME D.O. No. P-11/3/2023-Policy-DCMSME) dtd. 28.3.2025 (Gazette notification S.O. 1364(E) dtd. 21.03.2025

Micro and Small Enterprises (MSEs) shall be entitled for benefits, subject to terms and conditions as under:

**A. Qualifying Criteria for MSE Bidder:**

i) MSE bidder has to mandatorily submit a copy of Udyam Registration Certificate (https://udyamregistration.gov.in).
ii) If the bidder fails to submit Udyam Registration Certificate in the original offer, the bidder may not be considered for evaluation as MSE.
iii) The Udyam Registration Certificate shall be valid. The certificate may be verified online during the bid evaluation and particulars submitted must be found to be valid in the Udyam website.

**B. Additional Qualifying Criteria for SC/ST MSE Bidder:**

In order for MSE owned by SC/ST Entrepreneurs to qualify for benefits available under Public Procurement Policy for MSEs (order 2012) to SC/ST Entrepreneurs, the "Social Category" in Udyam Registration Certificate should state "SC" or "ST".

Bidder must include the relevant page of Udyam Registration Certificate wherein the social category of the entrepreneur is mentioned.

**C. Additional Qualifying Criteria for MSE Bidders owned by Women Entrepreneurs:**

Micro & Small Enterprises shall be considered as owned by Women Entrepreneurs as per the below definition:

- In case of proprietary MSE, proprietor should be Women.
- In case of partnership MSE, the Women partner(s) should be holding at least 51% shares in the unit.
- In case of Limited companies, at least 51% share should be held by Women shareholder(s).

In order for MSE owned by Women Entrepreneurs to qualify for benefits available under Public Procurement Policy for MSEs (order 2012) to Women Entrepreneurs, the MSE shall additionally submit notarized copy of the following:

- In case of a proprietorship firm, the name and address of proprietor, and certified copy of Bank Account Details or Cancelled Cheque.
- In case bidder is a partnership firm, certified copy of the partnership deed.
- In case of company (whether private or public), certified copy of the `Certificate of Incorporation' together with certified copy of Memorandum/Articles of Association
- Self-certification by the women owner declaring herself as women owner of the MSE

The above documents shall not be required to qualify for aforementioned benefits when the Udyam registration certificate

submitted by the bidder clearly mentions the "Gender" of the MSE and can also be verified online without restriction.

**D. Benefits Under The Public Procurement Policy for Micro and Small Enterprises (MSEs) Order 2012**

1. **Issue of Tender Sets Free of Cost**
   All Tenders shall be provided free of cost and tender documents are downloadable from the Central Public Procurement Portal (CPPP) **http://eprocure.gov.in/eprocure/app** or GeM portal or can be obtained from the Office of General Manager (Commercial). NITs are also published in NRL Website **www.nrl.co.in**

2. **Exemption from payment of EMD (Earnest Money Deposit)**
   MSE units meeting the qualifying criteria (point A above) shall be exempted from paying EMD, if EMD is applicable against the tender.

3. **Price preference for MSE Bidder:**

i) In tender, participating Micro and Small Enterprises quoting price within price band of L1+15% (evaluated price) shall also be allowed to supply a portion of requirement by bringing down the price to L1 price in a situation where L1 price is from someone other than a Micro and Small Enterprise and such Micro and Small Enterprise shall be allowed to supply up to 25 percent of total tendered value. [*Refer point F(i) for applicability*]

Matching of L1 price shall be offered to MSEs in the sequence of their ranking (i.e., L2, L3, L4 and so on).

In case of more than one such MSE within the L1+15% band, the supply shall be shared proportionately (to tendered quantity) provided such MSE bidders matches the L1 price.

ii) In case of tender item is non-splitable or non-dividable, etc. MSE quoting price within price band L1+15% may be awarded for full/complete supply of total tendered value to MSE, considering spirit of policy for enhancing the Government procurement from MSE, provided they agree to bring down their price to L1 price.

iii) NRL reserves the right to allow micro and small enterprises as well as MSEs owned by SC/ST entrepreneur and MSEs owned by Women, purchase preference as admissible under the prevailing procurement policy for MSEs.

iv) **For Supply of Goods only:**

- The quantity against the tender may be split to enable ordering of 25% of tender quantity to MSE bidder(s) within the price range of L1 bidder's price + 15% subject to their matching L1 bidder's evaluated price. [*Refer point F(i) for applicability*]

- In case where tender quantity can be split and MSE vendor is already getting order for more than 25% of the tender value by being L1 or through matching L1 price, no additional purchase preference is required to be given in that tender. In such cases, the sequence of matching L1 bidder's price shall start from the splitable item with highest amount onwards. Once 25% of the tender value is achieved for MSE vendor(s), no additional purchase preference is required to be given in that tender.

- The quoted prices by bidders against various items of tender shall remain valid in case of splitting of quantities to MSE bidder.

- Out of this 25% allocation for MSEs, 4% shall be to MSEs owned by SC/ ST entrepreneurs. However, in event of failure of MSEs owned by SC/ ST entrepreneurs to participate in the bidding process or meet the tender requirements and L1 price, 4% will be met from other MSEs.

- Additionally, out of above 25% allocation to MSEs, 3% shall be to MSEs owned by Women. However, in event of failure of MSEs owned by Women to participate in the bidding process or meet the tender requirements and L1 price, 3% will be met from other MSEs.

- While granting purchase preference as above, procurement of goods may include certain small work, or some services, which are incidental or consequential to supply of such goods such as transportation, insurance, installation, commissioning, training & maintenance.

**Clarification:**

- *In case where quantity against a line item cannot be split (i.e., 25% to MSEs) or items with single quantity or in grouped item, the complete line item/ group shall be awarded on MSE bidder within the price range of L1 bidder's*

*evaluated price + 15% subject to their matching L1 bidder's price.*

- *In case, quantity(ies) against an item/ group cannot be split among MSEs, first opportunity shall be given to*
  - *MSEs owned by Women*
  - *then to MSEs owned by SC/ ST entrepreneurs, and*
  - *lastly to other MSEs, within the price range of L1 non-MSE bidder's evaluated price + 15%.*
- *In cases where MSE bidder in order of preference indicated above refuses to accept the L1 price, opportunity shall be provided to the other bidders in above order of preference and so on.*

v) **For Services only:**

- *In case the tendered scope cannot be split, the complete scope of Services shall be awarded on MSE bidder within the price range of L1 bidder's evaluated price + 15%, subject to their matching L1 bidder's price.*

- *In case, besides general MSEs, MSEs owned by SC/ ST and/ or MSEs owned by Women are within the price range of L1 bidder's evaluated price + 15%, first opportunity shall be given to*
  - *MSEs owned by Women*
  - *then to MSEs owned by SC/ ST entrepreneurs, and*
  - *lastly to other MSEs, within the price range of L1 non-MSE bidder's evaluated price + 15%.*

- *In cases where MSE bidder in order of preference indicated above refuses to accept the L1 price, opportunity shall b provided to the other bidders in above order of preference indicated above.*

vi) In case purchase preference is applicable, but negotiation is to be conducted with L1 bidder, negotiation shall be carried out. Price range within 15% shall be considered for MSE bidders based on the original prices of L1 bidder not on the negotiated prices. However, MSE bidder shall be offered to match the negotiated prices (even if, post negotiation, they are higher by more than 15% as compared to L1 bidder, provided they were within 15% of L1 bidder as per original quoted prices).

vii) **For Supply of Goods as well as Services:**
In case when the contract is awarded to an MSE bidders matching the L1 price refuses or fails to execute the supply/service after award, the quantities or unexecuted quantities may be subsequently offered to any of the other MSE bidders (not selected for award so far, and falling within the price band of L1+15%), in the sequence of their ranking (i.e., L3, L4 and so on) subject to their matching the evaluated L1 price. In absence of such MSE bidder, the quantity may be offered to the original L1 agency (non-MSE).

- In case of "refusal", subsequent award to next eligible agency shall be done within original or extended offer validity.
- In case of "failure", unexecuted quantities shall be offered to the next eligible agency within maximum one year from the original date of award.

Defaulting supplier/contractor shall be subject to penalties as per procedure.

**E. Relaxation of Past Tract Record (PTR) for MSEs and Start ups**

- The Pre-Qualification Criteria (PQC) related to prior turnover and prior experience of the bidder will be relaxed if the bidder is Micro or Small Enterprise as per latest definitions under MSME rules or Startups and meets the quality and technical specifications described in the tender, subject to submission of valid supporting documents by the bidder. In case any bidder is seeking exemption from Turnover / Experience Criteria, the supporting documents to prove his eligibility for exemption must be uploaded with his bid for evaluation by the buyer.
- As per Department of Expenditure's OM No.F.20/2/2014-PPD dated 20.09.2016, relaxation regarding the prior turnover and prior experience is applicable only to all startups recognized by Department of Industry & Internal Trade (DPIIT), subject to meeting of quality and technical specifications.
  An entity shall be considered as a 'start-up'-
  a) Up to ten years from the date of its incorporation/ registration.
  b) If its turnover for any of the financial years has not exceeded Rs 100 (Rupees Hundred) crore
  c) It is working towards innovation, development or improvement of products or processes or services, or if it is a scalable business model with a high potential of employment generation or wealth creation
  d) Provided further that in order to obtain benefits a Startup so identified under the above definition shall be required to be recognized as Startup by DPIIT.
- This waiver of prior turnover and prior experience will not be applicable for items related to public safety, health, critical security operation and equipment's etc.
- If PTR for MSEs is not completely waived off but proposed to relax the same up to certain extent compared to PQC set for other non MSE bidders, in such cases, prior experience may be partially relaxed, however, prior turnover will remain waived off.

**F. Applicability of the Policy**

i) For a participating bidder, MSE status shall be considered for purchase (price) preference in respect to procurement of goods and services only, if the vendor is registered as MSE. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product. Traders/Distributors/Sole Agents are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documents in this regard shall be uploaded along with the bid in respect of the offered product or service and buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid.

ii) Policy meant for procurement of only goods produced and service rendered by MSEs. However, traders /resellers /distributors /authorized agents will not be considered for availing benefits under Public Procurement Policy 2012 for MSEs, except exemption from payment of EMD.

iii) Public Procurement Policy is applicable for supply of goods and services. Works contract is not covered under the PP Policy for MSME. Accordingly, the clause D 3 (Price preference for MSE bidder) and clause E (Relaxation of past track record (PTR) for MSEs and Startups) as mentioned above will not be extended to works contracts.

iv) The provisions for MSE bidders mentioned in this document shall be applicable for limited enquiries as well as NITs.

**G. Providing MSE benefits to Medium category bidders**

As per amendment made in Micro, Small and Medium Enterprises Development Act, 2006 vide S.O. 2119(E), dated the 26th June, 2020, and published in Govt. of India gazette notification dated 18th October 2022.
The notification states that - " (5) In case of an upward change in terms of investment in plant and machinery or equipment or turnover or both, and consequent re-classification, an enterprise shall continue to avail of all nontax benefits of the category (micro or small or medium) it was in before the re-classification, for a period of three years from the date of such upward change."

Further it was clarified vide Press Release published on 19th October 2022 in Govt of India website https://pib.gov.in/PressReleaseIframePage.aspx?PRID=1869091 that, - " Non-tax benefits include benefits of various schemes of the Government, including Public Procurement Policy, Delayed Payments, etc."

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No.: PUR1011567

**Annexure 3.2**

## SELF DECLARATION OF BEING MANUFACTURER / OEM OF THE OFFERED GOODS

*With reference to our submitted offer against the subject bid, we hereby confirm that we are **MANUFACTURER / OEM** of goods(s) that are offered to NRL as per requirement of the tender. We understand that traders are not eligible for Purchase (price) preference and we shall not supply traded goods in the event of any preference granted to us resulting in an awrd/ order..*

*Relevant NIC code of the submitted UDYAM certificate is _____.*

*We understand that any wrong declaration in this context shall make my agency / company liable for penal action including Holiday Listing by NRL.*

**Name of Bidder**

(Signature of the authorized signatory of bidder with stamp, date & place)

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**Annexure 6**

## Policy Regarding Sharing Of Land Border With India

**Following Restrictions under Rule 144(xi) of the General Financial Rules (GFRs), 2017- Department of Expenditure Order (Public Procurement No. 4) ref. No.F.7/10/2021-PPD (01) dated 23.02.2023 shall be applicable for this tender.**

[The detailed guidelines are available on the website of DoE (https://doe.govin/)]

I. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority as specified in the DoE Order referred above.

*Further, any bidder (including an Indian bidder) who has a Specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority.*

II. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

III. "Bidder from a country which shares a land border with India" for purpose of this Order means:-

a. An entity incorporated, established or registered in such a country; or
b. A subsidiary of an entity incorporated, established or registered in such a country; or
c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
d. An entity whose beneficial owner is situated in such a country; or
e. An Indian (or other) an agent of such an entity; or
f. A natural person who is a citizen of such a country; or
g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

IV. The beneficial owner for the purpose of (iii) above will be as under:

1. In case of accompany or limited liability partnership the beneficial owner is the natural person(s), who whether acting alone or together or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

   Explanation---

   a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent. Of shares or capital or profits of the company.
   b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals.

4. Where no natural person is identified under (1) or (2) or (3) above the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another or to represent another in dealings with third person.

VI. The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with “Competent Authority”.

VII. The registration shall be valid at the time of submission of bid and at the time of acceptance of bid.

VIII. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution.

IX. Bidder mandatorily requires to submit “Certificate of Compliance” in the enclosed Form: A. This certificate need to be submitted in the Company’s Letter Head and should be sealed and signed by the authorized signatory on behalf of the bidder. Non-submission of Form A may lead to disqualification for Techno-Commercial evaluation of the submitted bid.

In case at any stage pre or post order placement it is found that that the certification furnished is false their bid shall be summarily rejected or order terminated as applicable. NRL may at its discretion initiate penal action against such bidders which may include Black Listing Holiday Listing the party /encashment of EMD or PBG submitted as per contractual provision etc.

**Note I:** For better clarity and to obtain information in detail bidders are requested to go through the Govt Circular issued by the Department of Expenditure Govt of India to this effect.

******

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**Annexure 6.1**

# FORM A

## CERTIFICATE OF COMPLIANCE

(On Bidder's Letter Head)

To,
CGM (Commercial)
Numaligarh Refinery Limited
Numaligarh, Assam.

Sub: Certificate of Compliance

Bidder's Details :

| Sl. | Bidder's Undertaking | Please put Yes (✔) or No (**X**), as applicable |
|---|---|---|
| 1 | (A) "I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country". | |
| | (B) Or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered.<br>[If applicable, evidence of valid registration by the Competent Authority shall be attached.] | |
| 2 | (A) "I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority." | |
| | (B) Or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered.<br>[If applicable, evidence of valid registration by the Competent Authority shall be attached.] | |
| 3 | (A) "I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder does not have any ToT arrangement requiring registration with the competent authority." | |
| | (B) "I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder has valid registration to participate in this procurement."<br>[If applicable, evidence of valid registration by the Competent Authority shall be attached.] | |

Place: Signature of Authorized Signatory :

Date: Name of Signatory :

Designation :

Seal of the Company :

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**Annexure 7.2**

## Code Of Integrity In Public Procurement

1 The bidders/ suppliers should sign a declaration about abiding by a Code of Integrity for Public Procurement in bid documents as per format provided below. In case of any transgression of this code, the bidder is liable for punitive actions such as cancellation of bids / contracts, holiday listing and so on.

2 **Code of Integrity for Public Procurement:** Procuring authorities as well as bidders, suppliers, contractors and consultants should observe the highest standard of ethics and should not indulge in the following prohibited practices, either directly or indirectly, at any stage during the procurement process or during execution of resultant contracts:

i) **"Corrupt practice":** making offers, solicitation or acceptance of bribe, rewards or gifts or any material benefit, in exchange for an unfair advantage in the procurement process or to otherwise influence the procurement process or contract execution;

ii) **"Fraudulent practice":** any omission or misrepresentation that may mislead or attempt to mislead so that financial or other benefits may be obtained or an obligation avoided. This includes making false declaration or providing false information for participation in a tender process or to secure a contract or in execution of the contract;

iii) **"Anti-competitive practice":** any collusion, bid rigging or anti-competitive arrangement, or any other practice coming under the purview of The Competition Act, 2002, between two or more bidders, with or without the knowledge of the procuring entity, that may impair the transparency, fairness and the progress of the procurement process or to establish bid prices at artificial, non-competitive levels;

iv) **"Coercive practice":** harming or threatening to harm, persons or their property to influence their participation in the procurement process or affect the execution of a contract;

v) **"Conflict of interest":** participation by a bidding firm or any of its affiliates that are either involved in the consultancy contract to which this procurement is linked (except the procurement is a continuation of the firm's earlier consultancy services); or if they are part of more than one bid in the procurement; or if the bidding firm or their personnel have financial or business relationships with any official of procuring entity who are directly related to tender or execution process of the contract or such official has any personal interest in the bidding firm; or improper use of information obtained by the (prospective) bidder from the procuring entity with an intent to gain unfair advantage in the procurement process or for personal gain.

vi) **"Obstructive practice":** materially impede the procuring entity's investigation into allegations of one or more of the above-mentioned prohibited practices either by deliberately destroying, falsifying, altering; or by concealing the evidence material to the investigation; or by making false statements to investigators and/or by threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation ; or by impeding the procuring entity's rights of audit or access to information.

3. **Obligations for Proactive Disclosures**

i) Procuring authorities as well as bidders, suppliers, contractors and consultants, are obliged under Code of Integrity for Public Procurement to suo-moto proactively declare any **conflicts of interest** (coming under the definition mentioned above – pre-existing or as and as soon as these arise at any stage) in any procurement process or execution of contract. Failure to do so would amount to violation of this code of integrity.

ii) Any bidder must declare, whether asked or not in a bid document, any **previous transgression(s) of such a code**

**of integrity** with any entity in any country during the last three years or of **being debarred** by any other procuring entity. Failure to do so would amount to violation of this code of integrity.

iii) To encourage voluntary disclosures, such declarations would not mean automatic disqualification for the bidder making such declarations. The declared conflict of interest may be evaluated and mitigation steps, if possible, may be taken by the procuring entity. However, proactive declarations of previous transgression(s) of a code of integrity with any entity in any country; or of being debarred by any other procuring entity, shall have no bearing in the tender evaluation, unless specifically mentioned elsewhere in the notice inviting tenders.

3 **Punitive Provisions:** Without prejudice to and in addition to the rights of the procuring entity to other penal provisions as per the bid documents or contract, if the procuring entity comes to a conclusion that a (prospective) bidder/supplier, directly or through an agent, has violated this code of integrity in competing for the contract or in executing a contract, the procuring entity may take appropriate measures including one or more of the following:

i) **if his bids are under consideration in any procurement:**
   a) Forfeiture or encashment of bid security
   b) calling off of any pre-contract negotiations, and;
   c) rejection and exclusion of the bidder from the procurement process

ii) **if a contract has already been awarded:**
   a) Cancellation of the relevant contract and recovery of compensation for loss incurred by the procuring entity;
   b) Forfeiture or encashment of any other security or bond relating to the procurement;
   c) Recovery of payments including advance payments, if any, made by the procuring entity along with interest thereon at the prevailing rate;

iii) **Provisions in addition to above:**
   a) Banning/ debarment of the bidder from participation in future procurements of the procuring entity for a period as specified in the NRL's policy for holiday listing Banning/ Debarring of Contractors/ Suppliers.
   b) Initiation of suitable disciplinary or criminal proceedings against any individual or staff found responsible.

*****

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**Annexure 7.2.1**

## Format for declaration by the Bidder for Code of Integrity

(On Bidder's Letter Head)

To,

_____

_____

**M/s Numaligarh Refinery Limited**

Dear Sir,

I/We hereby declare that we shall abide by the Code of Integrity for Public Procurement as mentioned under Annexure-I-A of your Tender document; And to the best of my/our knowledge and understanding have no conflict of interest, as mentioned under Annexure-I-A of the Tender.

The details of any previous transgressions of the code of integrity with any entity in any country during the last three years or of being debarred by any other Procuring Entity are as under:

(a)

(b)

(c)

[*Write "NA" if not applicable*]

It is understood that any wrong declaration / non-declaration in this context shall make me / my agency / company liable for further action under Holiday Listing procedure of NRL for Breach of the Code of Integrity for Public Procurement.

Thanking you,

Yours Faithfully,

**Name of Bidder**

(Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
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**Annexure 8**

## Self-Declaration Of Debarment / Blacklisting / Holiday Listing & Allied Firms

(1) **SELF DECLARATION OF DEBARMENT / BLACKLISTING / HOLIDAY LISTING**

I/We hereby declare that I am / we are currently not serving any holiday listing/blacklisting/debarment orders issued by Numaligarh Refinery Limited (NRL) or Ministry of Petroleum & Natural Gas (MoPNG) debarring me/us from participation in tendering or carrying on business dealings with NRL/MoPNG.

I/We understand that bids from the bidders who are on holiday list by NRL or MoPNG will not be considered.

It is understood that any wrong declaration in this context shall make me / my agency / company liable for action under Holiday Listing procedure of NRL.

**Note**: "Ministry of Petroleum & Natural Gas (MoPNG)" is the Administrative Ministry of NRL and the term in this context shall mean the ministry itself and not the other PSUs or Departments under it.

2) **DECLARATION OF ALLIED FIRMS OF THE BIDDER**

I/We hereby declare that following are my/our allied firm(s) (*as defined in NRL's holiday listing policy*):-

Name(s), PAN and GST number(s) of our allied firms are as follows:-

| Sl. No. | Name of Allied Firm | PAN | GSTN |
|---|---|---|---|
| | | | |
| | | | |
| | | | |
| | | | |
| | | | |

It is understood that in case of debarment of me / my agency / company by NRL, the debarment shall be automatically extended to my/our allied firms.

**Name of Bidder**

(Signature of the authorised signatory of bidder with stamp, date & place)

Note: *Please refer NRL's current "Policy for Holiday listing/ Banning/ Debarring of Contractors/ Suppliers" available in NRL website www.nrl.co.in for details.* [www.nrl.co.in → Tenders → Download Manuals → Holiday Listing Policy]. *The definition of "Allied Firm" is elaborated therein.*

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**Annexure 9**

## Self-Declaration Of Conflict-of-intrest Free Bid

**Terms & Conditions in respect of "Conflict of Interest" in the bidding process: -**

A bidder shall not have conflict of interest with other bidders. The Bidders found to have a conflict of interest shall be disqualified. A bidder may be considered to have a conflict of interest with one or more parties in the bidding process, if:

a) They have controlling partner(s) in common; or
b) They receive or have received any direct or indirect subsidy/ financial stake from any of them; or
c) They have same legal representative/agent for purposes of this bid; or
d) They have relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the bid of another Bidder; or
e) Bidder participates in more than one bid in this tender. Participation by a bidder in more than one bid will result in the disqualification of all the bids in which the parties are involved. However, this does not limit the inclusion of the components/ sub-assembly/ Assemblies from one bidding manufacturer in more than one bid.
f) In cases of agents quoting in offshore procurements, on behalf of their principal manufacturers, one agent cannot represent two manufacturers or quote on their behalf in a particular tender enquiry. One manufacturer can also authorize only one agent/dealer. There can be only one bid from the following:
a) The principal manufacturer directly or through one Indian agent on his behalf; and (in case of receipt of the bids from both the Indian agent & and the principal manufacturer shall be approached to arrange for withdrawal of one of the bids; in case of non-withdrawal, the bid from the principal manufacturer shall be considered.)
b) Indian/foreign agent on behalf of only one principal.
g) A bidder or any of its affiliates provided the consultancy (through another contract) in the preparation of the design or technical specifications of this supply/contract.
h) In case of a holding company having more than one independently manufacturing units or more than one unit having common business ownership/management, only one unit should quote. Similar restrictions would apply to closely related sister companies. Bidders must proactively declare such sister/ common business/ management units in same/ similar line of business.
i) However, restrictions under (a), (b), (c), (d) shall not be applicable against licensor recommended agents/ suppliers.
j) Self-declaration from participating bidders w.r.t not having any conflict of interest with other participating bidders shall be submitted with bids. In case any conflict of interest is found to have occurred, such bidders shall be informed to keep any one bid and withdraw the rest of the bids; In case of non-withdrawal, NRL shall disqualify all such bids with conflict of interest.

**Self-declaration of conflict-of-interest free bid:**

I am/ We are participating in this tender (whole, or part of the tender), taking note of the above terms and conditions and hereby declare that there is no other participating bidder in the same (whole, or part of the tender), which may create conflict of interest as described above, to the best of our knowledge and understanding.

I/We understand that in case any conflict of interest is found to have occurred, NRL reserves the right to disqualify the bids from the bidders deemed to have conflict of interest.

I/ We further declare that in case I/ We observe that any conflict of interest is found to have occurred after the unpriced bid opening, I/ We shall immediately inform NRL in writing regarding such conflict of interest within 2 days from unpriced bid opening.

It is understood that any wrong declaration / non-declaration in this context shall make me / my agency / company liable for further action under Holiday Listing procedure of NRL.

Date:

Place: **(Seal & signature of Authorized signatory of bidder)**

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**Annexure 10**

## Indemnity Bond Cum Undertaking Regarding Gst

(On Bidder's Letter Head)

Recipient Name: **M/s Numaligarh Refinery Limited**

| State | NRL GSTIN | Address: |
|---|---|---|
| **Assam** | 18AAACN6984B1ZD | NRP Complex, NRL site, Numaligarh, Golaghat, Assam-785699 |
| **West Bengal** | 19AAACN6984B1ZB | Fourth floor, plot no.31, Bharat Bhawan, 118 Prince Gulam Md.Shah Road, Golf Green, Kolkata, West Bengal-700095 |
| **Delhi** | 07AAACN6984B2ZF | 6th Floor, 15-17, Tolstoy house, Tolstoy Marg, New Delhi-110001 |

**Sub:** Payment of GST Amount and filing of GST Return for availing Input Tax Credit (ITC) by Numaligarh Refinery Limited (NRL).

Sir / Madam,
With reference to payment of GST amount and filing of GST Return for availing Input Tax Credit (ITC) by NRL as per eligibility provisions for the identified Invoices raised by us, we, M/s _____, having our Registered Office at _____, possessing GST Identification No _____ hereby declare and undertake as follows:

1. We have disclosed all the facts relating to our firm to M/s Numaligarh Refinery Limited
2. We hereby agreed and undertake to file GSTR-1 on time i.e. 11th of the next month so that NRL can take Input Tax Credit by matching GSTR-2A.
3. We hereby declare that we shall deposit GST for the related invoices by 20th of the succeeding month as per the provision of GST law (or within due date as per GST laws).
4. We hereby declare that we will file GSTR 3B related to all invoices in time i.e. 20th of the next month (or within due date as per GST laws).
5. We hereby agree and undertake to indemnify as under:-
    a. The Firm / Company shall take all necessary safeguards to ensure availing of ITC for all invoices raised on NRL without any financial loss to NRL.
    b. In case of rejection of ITC by the concerned Tax Authority, for non-payment of GST amount by us or for any other reasons attributable to us, we hereby undertake and agree to indemnify NRL in full against all consequences, liabilities of any kind whatsoever directly arising from denial of ITC which includes interest and penalty arising out of such irregular availment of ITC by you opined by GST Authority.
    c. We hereby agree and confirm that, any breach of the above indemnification or undertakings shall be construed as breach of the terms and conditions for reimbursement of GST and NRL shall be at liberty to take such action against us including recovering of reimbursed GST amount from
        i. Any of our Bank Guarantee executed in your favour, if any,
        ii. Security Deposit paid for any of your work, if any or
        iii. Other unpaid invoices, if any of us raised with recipient

_____
**Signature of the Authorized Signatory of the Indemnifier / Bidder**

Name:
Designation:
Seal:
Date:

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No.: PUR1011567

**Annexure 11**

## Compliance To Tender

(To be given on Company Letter Head)

Date:

To,

_____
_____
_____
_____

Sub: Acceptance of Terms & Conditions of Tender.

Dear Sir,

1. I/ We have downloaded / obtained the tender document(s) for the above mentioned 'Tender/Work' from the website(s) namely, _____ website(s).

2. I / We hereby certify that I / we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (including all documents like annexure(s), schedule(s), etc.), which form part of the contract and I / we shall abide hereby by the terms / conditions / clauses contained therein.

3. The corrigendum(a) / addendum(a) issued from time to time by your department/ organization too has also been taken into consideration, while submitting this acceptance letter.

4. I / We hereby unconditionally accept the tender conditions of above mentioned tender document(s) / corrigendum(s) in its totality / entirety.

5. I / We certify that all information furnished by the our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/ organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including holiday listing.

Yours Faithfully,

**Name of Bidder**

(Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
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**Annexure 12**

## Settlement Of Disputes

All disputes of difference whatsoever which shall at any time arise between the parties hereto touching or concerning the works or supply or the execution or maintenance thereof of this contract/supply or the rights touching or concerning the works or the execution effect thereof or to the rights or liabilities or the construction meaning , operation or effect thereof or to the rights or liabilities of the parties or arising out of or in relation thereto whether during or after completion of the Contract/supply or whether before or after determination, foreclosure or breach of the contract/supply ( other than those in respect of which the decision of any person is by the contract/supply expressed to be final and binding) shall be endeavored to be amicably settled by the parties in the following manner:

a) At the first instance by the Engineer-In-Charge/ Purchase Officer.
b) At the second instance by the Chief Executive of NRL (Presently Managing Director) or authorized representatives of Chief Executive of NRL.
c) Parties may opt for conciliation under Arbitration and Conciliation Act 1996 as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof.
d) In case party is not satisfied with the above, the matter will be referred to Arbitration.
e) The option of amicably settling the dispute will be open at any time during and post arbitration or court litigation or Tribunal or in any other jurisdictional forum and/or before or after award, order, judgement etc. passed by arbitrator(s), court(s), tribunal(s) or any other jurisdictional forum(s).

**ARBITRATION**

i. Any dispute or difference of any nature whatsoever, any claim, cross-claim, counter-claim or set off of NRL (hereinafter Company) against the Contractor/Vendors or of the Contractor/Vendors against company or regarding any right, liability, act, omission on account of any of the parties hereto arising out of or in relation to this agreement shall be resolved through Arbitration under Arbitration and Conciliation Act 1996 as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re- enactment thereof.

ii. Reference to Arbitration shall be made by writing a letter to the Managing Director of the Company, with copy to the Contractor/Vendor or the company, as the case may be.

iii. On receipt of such letter referring the dispute to Arbitration, Managing Director or any other officer of the Company delegated by Managing Director shall, within 30 days from the receipt of the said letter, suggest to the parties the names of three persons, who are not disqualified to act as such Arbitrator under the Arbitration and Conciliation Act 1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof for selection of one of them for appointment as a sole Arbitrator, to adjudicate the dispute(s) between the parties.

iv. If while referring the dispute to Arbitration the parties mutually agree that the Arbitration will be by a Tribunal consisting of three Arbitrators, then each party will nominate one person, who is not forbidden to act as Arbitrator and the two Arbitrators so nominated will select the third and Presiding Arbitrator to adjudicate the dispute.

v. Subject to the provisions of the Arbitration and Conciliation Act, 1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof, the Award of the Arbitrator or the Arbitrators, as the case may be, shall be final, conclusive and binding on both parties to the Agreement.

vi. The party(ies) against whom the Arbitration proceedings have been initiated, that is to say, the Respondents in the proceedings, shall be entitled to prefer a Cross-Claim, Counter- Claim or set off before the Arbitrator(s) in respect of any matter or issue arising out of or in relation to the Agreement without seeking a formal reference to Arbitration for such Counter-Claim, Cross Claim or set off and the Arbitrator(s) shall be entitled to consider and deal with the same as if the matters arising there from has/have been referred to him/them originally and deemed to form part of the reference made to Arbitration.

vii. Place of arbitration shall be unless otherwise agreed by the parties, will be Numaligarh Or Guwahati as mutually agreed.

viii. The parties hereby agree that, unless the Arbitration and Conciliation Act,1996, as amended by the Arbitration and

Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof prohibits, the courts in the city of Golaghat or Guwahati shall have jurisdiction to entertain any application or other proceedings in respect of anything arising under this agreement and any award or awards made by the Sole Arbitrator(s) / Arbitral tribunal shall be filed in the concerned courts in the District Court of Golaghat or Kamrup Metro.

ix. Notwithstanding anything contained in the contract between the parties, the aforementioned clause nos. (i) to (viii) shall be applicable only in case where the value of dispute between the parties, including the claim, counter claim, or set off is less than Rs. 10 Crores, for contracts of domestic procurements.

x. In case of a value of the dispute is above Rs. 10 Crores for contracts of domestic procurements, the party shall have to approach the Managing Director, NRL for Mediation.

**MEDIATION**

I. Initiation of Mediation

For disputes valued above Rs. 10 Crores, the concerned party shall approach the Managing Director of NRL with their claim. Upon receiving such a request, the Managing Director shall refer the matter to a High-Level Committee (HLC) for mediation, where applicable.

II. High-Level Committee (HLC)

A High-Level Committee will be constituted by the MD of NRL, comprising a Chairman and two Members, following these guidelines:

a. Chairman
The Chairman will be selected from individuals of high integrity from the following categories:-

- Retired Civil Servant not below the rank of Joint Secretary.
- An officer who has served as an Independent External Monitor (IEM) at any Public Sector Undertakings (PSUs).
- Retired High Court or Supreme Court Judge.

b. Members
Members will be individuals who had superannuated from any Central Oil PSUs not below the rank of CGM.

III. Mediation Procedure

Mediation shall be conducted within the territorial jurisdiction of a court or tribunal competent to decide the subject matter of the dispute in accordance with the Mediation Act 2023. Mediation under this Act must be completed within one hundred and twenty days from the date fixed for the first appearance before the mediators.

IV. Post-Mediation Recourse

In the event of the failure of the mediation process, the parties retain the right to pursue appropriate legal recourse.

**FOR THE SETTLEMENT OF DISPUTES WITH PSEs / Government (except a dispute or difference concerning the Railways, Income Tax, Customs and Excise Duties):-**

As per Government guidelines / circulars, etc prevailing at the time of reference of the disputes.

**JURIDICTION:** All disputes, actions and proceedings arising out of this contract shall be under the jurisdictions of the courts in the city of Golaghat or Guwahati.

**Name of Bidder**

(Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27

NRL Tender No. : PUR1011567

**Annexure 14**

## Instructions: ONLINE EMD SUBMISSION *(through the portal of HDFC Bank)*

The EMD must be submitted ONLINE within the submission due date & time specified in the NIT and tender document through the online portal of HDFC bank link: https://nrl.procure247.com.

a) User Manual for Bidders is available in NRL Website under https://www.nrl.co.in → Tenders → Tender Manual → EMD Online Deposit Manual (HDFC Bank Payment Portal)
b) Visit HDFC Bank Payment Portal URL: https://nrl.procure247.com
c) Click on 'Bidder Registration'
d) Bidder Registration Screen shall appear – Fill the mandatory details required and complete the process.
e) On successful submission of details in bidder registration form, bidder will get the system generated link to verify his/her email id and login to the website. Without verifying email id bidder may not be able to login to the system.
f) After successful email verification – please login with your user id and password
g) Bidder will receive system generate One Time Password (OTP) on their registered mobile number. In case not receiving of OTP please click Regenerate OTP and login.
h) After login Screen bidder can search the tenders and proceed for EMD payment.
i) Bidders' have to click on Payment Dashboard option available under Action tab
j) Payment Dashboard – Click on Pay to proceed further for the selection of payment mode.
k) Smart Hub – Bidders' can select the online payment and click on Pay to proceed further.
l) After click on Pay – Bidder will get an option for Cards and Net Banking. Bidders can select their preference and proceed further for the payment.
m) On successful payment bidder will receive system generated message on screen stating "EMD paid successfully"
n) Bidders' can also download the Payment receipt from Payment Dashboard.
o) Downloaded payment receipt – Bidders' can easily print the receipt and use it for their bidding purpose.
p) Since the HDFC Bank payment gateway is not under the CPPP/GeM, so the payment mode is mentioned as offline (BG) in the CPP portal and Advisory Bank: HDFC Bank in GeM portal. In case of CPPP tenders, bidder has to make a dummy entry in the EMD fields of CPPP by putting 'Transaction ID' (HDFC Bank payment receipt) as instrument no., payment date as issue date, any date as expiry date, and bank name as issuer details. Please upload the EMD payment receipt along with technical bid.
q) For any technical help, the bidders can contact HDFC Bank executive Mr. Tapan Desai at Mobile No: 8866287104 and email: tapan@tender247.com.

**A receipt will be generated after successful payment. Bidder can take print out for onward submission with tender as well as save a soft copy of the receipt.**

**MSE bidders are required to submit valid MSE registration certificate as explained in Annexure 3 instead of the EMD deposit receipt.**

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No. : PUR1011567

**Annexure 14.1**

**Bid Security Declaration**
(On Bidder's Letterhead)

**To,**
**Numaligarh Refinery Limited,**
----------,
----------,
----------.

**Subject: Bid Security Declaration**

Dear Sir / Madam,
After examining / reviewing provisions of above referred tender documents (including all corrigendum/ Addenda), we M/s …….. have submitted our Offer/ Bid no: …….,
We, M/s …….. hereby understand that, according to your conditions, we are submitting this Bid Security Declaration.
We understand that we will be put on holiday/ banning list (as per Holiday Listing Policy of Numaligarh Refinery Limited in this regard), if we are in breach of our obligation(s) as per following:

1. We withdraw or amend our tender suo-moto after opening of bid & within the period of bid validity; or
2. We impair or derogate from the tender in any respect within the period of validity of the tender; or
3. We do not accept the 'arithmetical corrections' of our bid price during evaluation, as per provision of tender document; or
4. We become successful bidder and fail to sign / accept the contract, if awarded to us; or
5. We refuse or fail to furnish Contract Performance Security within the stipulated time as per tender / LOA or within the extended time allowed by NRL (if any); or
6. We are found to have neglected / abandoned the LOA / contract; or
7. We refuse or fail to execute the awarded Contract as per the terms and conditions of the Contract; or
8. We are found to be having indulged in corrupt/fraudulent /collusive/coercive practice as per procedure; or
9. We commit any breach of tender conditions during execution of the contract.

This declaration is valid till the validity of our offer and shall extend automatically if the bid validity date is extended from our side.

**For & on behalf of** M/s _____

**Signature :**
**Name :**
**Designation :**
**Date :**
**Company Seal :**

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No.: PUR1011567

**Annexure 15**

## Instructions: Bank Guarantee (BG) Submission

1) BG shall be as per the prescribed format provided below.

2) The bank guarantee applicable for various purposes are listed below along with the applicable formats

| Annexure no. & name | Purpose of BG |
|---|---|
| 15.1: Bank Guarantee for Earnest Money Deposit | The Bank Guarantee (BG) shall be valid for at least 06 (Six) months from the final bid submission date. The bid security is normally to remain valid for a period of 60 (sixty) days beyond the final bid validity period. In case, Contract Performance Security (CPS) is applicable, the successful bidder has to keep his Bid Security, if submitted in the form of a BG, valid till CPS is submitted. The contractor shall be required to suitably extend the period of Bank Guarantee. |
| 15.2: Bank Guarantee for Contract Performance Security | The Bank Guarantee (BG) shall be valid for at least 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee / defect liability period (if any). |
| 15.4: Bank Guarantee for Indigenous Purchase (Warranty / Guarantee) | The Bank Guarantee (BG) shall be valid for at least 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee / defect liability period (if any). |
| 15.5: Bank Guarantee against Advance payment | The Bank Guarantee (BG) shall be valid as per tender/order. The validity period shall normally be as long as the advance or any part thereof remains outstanding and shall expire and become ineffectual only after the recovery of entire sum (or as stated in the tender / order). |
| 15.6: Bank Guarantee against Milestone payment | The Bank Guarantee (BG) shall be valid as per tender/order. |

3) Acceptable forms of Bank Guarantee: -

(a) Bank Guarantee should preferably be issued in electronic form. For issuance of Electronic Bank Guarantee (e-BG) through National E-Governance Service Limited (NeSL) platform, details of NRL (beneficiary) are as under: -

| | | |
|---|---|---|
| (i) | PAN | AAACN6984B |
| (ii) | Name | Numaligarh Refinery Limited |
| (iii) | Date of Incorporation | 22.04.1993 |
| (iv) | E-mail ID | ketool.a.tadvi@nrl.co.in |
| (v) | Contact No. | 9974952135 |
| (vi) | Legal Constitution | Entity |
| (vii) | Registered Office address | 122A, G. S. ROAD CHRISTIANBASTI, GUWAHATI, Assam, India, 781005 |
| (viii) | Registered Office Pin code | 781005 |
| (ix) | Communication address | Numaligarh Refinery Limited,<br>PO-Numaligarh Refinery Project, Dist. Golaghat, Assam, 785699 |
| (x) | Communication address Pin code | 785699 |

(b) Other acceptable form of BG would be BG routed through SFMS platform. Relevant information are as follows:

**(i) Beneficiary bank details:**
Axis Bank
Chhibber House, Ground Floor, G.S Road, Guwahati -781005
IFSC: UTIB0000140

**(ii) Advising message to be sent to beneficiary bank:**
IFN 760 / IFN 760 COV for issuance of bank guarantee
IFN 767 / IFN 767 COV for amendment of bank guarantee
Field number as “7037” and Particulars (to be mentioned in Row 1) as “NRL140025551” should be correctly captured in the above messages.

The supplier shall submit to NRL the copy of SFMS message as sent by the issuing bank along with the original bank guarantee. Issuing bank mail ID should be invariably mentioned on the face of the bank guarantee.

(c) If BG is neither issued in electronic form (e-BG) nor routed through SFMS route, the Bank guarantee submitted by the tenderers needs to be immediately verified from the issuing bank before acceptance. For acceptance of such BGs, the BG or its covering letter should contain the name, designation and code number of the Bank officer(s) signing the guarantee(s). The address and contact details (including telephone no.) of the controlling officer of the branch of the bank issuing the BG should be included.

*****

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No.: PUR1011567

**Annexure 15.2**

## Bank Guarantee for Contract Performance Security

(to be executed on Non-Judical Stamp Paper of appropriate value as per proforma below)

Dear Sirs,

In consideration of the M/s Numaligarh Refinery Limited, 122 A, G.S. Road, Christian Basti, Guwahati - 781005, Assam, India (hereinafter called the Company which expression shall include its successors and assigns) having awarded.....to M/s .....Constitution, Address ……...(hereinafter referred to as "The Contractor" which expression shall wherever the subject or context so permits include its successors and assigns) a supply contract in terms inter-alia, of the Company(s) letter of acceptance No./ Contract / Work / Purchase Order No.: .....……... dtd. and the General Purchase Conditions / General Conditions of Contract (as applicable for this contract) of the Company and upon the conditions of contractor's furnishing for the performance of contractor's obligations and/or discharge of contractor's liability under and/or in connection with the said contract up to a sum of (in figures) .....…… ……..(in words) (only) amounting to 3% (three percent) of the contract value.

We (name)..... (Constitution)..... (hereinafter called the Bank which expression shall include its successors and assigns) hereby jointly and severally undertake and guarantee to pay the Company in (currency) forthwith on first demand in writing and without protest or demur any and all moneys anywise payable by the Contractor to the Company under, in respect or in connection with the said contract inclusive of all the Company's losses and damages and costs (inclusive between attorney and client), charges and expenses and other moneys anywise payable in respect of the above specified in any notice of demand made by the Company to the Bank with reference to this guarantee upto an aggregate limit of (in figures) ..... (in words) ..... only.

And the Bank hereby agrees with the Company that:

i) The guarantee/undertaking shall be a continuing Guarantee/Undertaking and shall remain valid and irrevocable for all claims of the Company and liabilities of the Contractor arising upto and until midnight of..... with a claim period until six (6) months thereafter, i.e., until midnight of ……

ii) This Guarantee/Undertaking shall be in addition to any other guarantee or security whatsoever that the Company may now or at any time any wise have in relation to the Contractor's obligations/liabilities under and/or in connection with the said contract and the Company shall have full authority to take recourse to or reinforce this security in preference to the other security(ies) at its sole discretion, and no failure on the part of the Company in enforcing or requiring enforcement of any other security shall have the effect of releasing the Bank from its full liability hereunder.

iii) The Company shall be at liberty without reference to the Bank and without affecting the full liability of the Bank hereunder to take any other security in respect of the Contractor's obligations and/or liabilities under or in connection with the said contract, and to vary the terms vis-a -vis the contractor of the said contract or to grant time and or indulgence to the contractor or to reduce or to increase or otherwise vary the prices of the total contract value or to release or to forebear from enforcement of all or any of the obligations of the contractor under the said contract and/or the remedies of the Company under any other security (ies) now or hereinafter held by the indulgence /or arrangements with the contractor or release or forbearance whatsoever which under the laws relating to securities shall but for these Provisions have the effect of releasing the Bank from its full liability to the Company hereunder or of prejudicing rights of the Company against the Bank.

iv) This guarantee/undertaking shall not be determined or affected by the liquidation or winding up dissolution or change of constitution or insolvency of the contractor but that in all respects and for all purpose be binding and operative until payment of all moneys payable to the Company in terms hereof.

v) The Bank hereby waive all rights at any time inconsistent with the terms of this Guarantee/Undertaking and the obligations of the Bank in terms thereof shall not be any wise affected or suspended by reason of any dispute or disputes having been raised by the contractor (Whether or not pending before any Arbitrator Officer, Tribunal or Court) or any denial of liabilities by the contractor or any other order of communication whatsoever by the contractor stopping or preventing or purporting to stop or prevent any payment by the Bank to the Company in terms hereof.

vi) The amount stated in any notice of demand addressed by the Company to the Bank as liable to be paid to the Company by

the contractor or as suffered or incurred by the Company on account of any losses or damages of costs, charges and/or expenses shall as between the Bank and the Company be exclusive of the amount so liable to be paid to the Company or suffered or incurred by the Company, as the case may be, and payable by the Bank to Company in terms hereof.

vii) Notwithstanding anything contained herein above, unless a claim or demand under this guarantee is made against the bank within six months from the date of expiry of the Guarantee, all the rights of the company under this guarantee shall be forfeited and the bank shall be released and discharged from all liability hereunder unless this guarantee shall have been previously extended.

******

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No.: PUR1011567

**Annexure 15.4**

## Bank Guarantee for Indigenous Purchase (Warranty/Guarantee)

(to be executed on Non-Judical Stamp Paper of appropriate value as per proforma below)

This deed of Guarantee made this …….day of.....by …….. Bank registered under …… and having its registered office at.....and wherever the context so requires includes its successors and assigns (hereinafter called "The Surety") for the favour of M/s Numaligarh Refinery Limited, a company under Public Sector, registered under Indian Companies Act of 1956 having its registered office at 122A, G.S. Road, Christanbasti Guwahati-781 005 wherever the context so requires includes its successors and assigns (hereinafter called as "The Company").

**WHEREAS**

1. The Company has placed an Order No. . . ……. Dated …… (hereinafter referred to as "the order") with M/s.....a company registered under Indian Companies Act 1956 having its registered office at …… ….....And whereas the context so requires includes its successors and assigns (hereinafter called or referred to as "the Supplier".
2. Under the terms of the order, the Supplier is required to furnish the Company at his own cost a Bank Guarantee for an amount of Rs. …….., being the amount equivalent to.....percentage of the total value of the order for fulfilling the contract.
3. The Surety at the request of the Suppliers, agreed to issue Bank Guarantee in terms of the said order on behalf of the Supplier and the Company has agreed to accept the same. It is hereby stipulated and agreed that the Supplier shall repair or replace free of cost Equipment, Machinery, its parts and components found defective on account of workmanship or defective material or inferior manufacturer, as mentioned in Warranty and Guarantee Clause of the Order for period of …… from the date of commissioning/installation OR from the date of delivery.
4. The Surety binds himself to pay to the extent of Rs.....in case of failure on the parts of the Supplier to perform this Guarantee provided the Company informs the Surety in writing to this effect.
5. Notwithstanding anything contained hereinafter the liability of the Surety in respect of this Guarantee is restricted to Rs. ……. (Rupees …… only) and it will remain in force till.....unless a suit or action to enforce a claim under Guarantee is filled against us within six months from.....(Which is date of expiry of guarantee). However, if the contract for which this Guarantee is given is not completed or fully performed, the Surety (Bank) hereby agrees to further extend the Guarantee till such time as is required to fulfill the contract.
6. The Surety shall not be discharged or released from this Guarantee by any arrangement between the Company and the Supplier with or without the consent of the Surety or by any alteration in the obligation of the parties or by any indulgence, forbearance, whether as to payment, time performance or otherwise.

In witness whereof the said Surety Subscribed and set its name and seal hereupto …… (the day).

******

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No.: PUR1011567

**Annexure 16**

## Instructions: Insurance Surety Bond

**Instructions: -**

(a) The surety bond shall be from a Surety Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI) as amended from time to time.

(b) The surety bond should contain the name, designation, and code number of the officer(s) signing the surety bond.

(c) The address, telephone number, E-mail, and other details of the head office of the surety insurer as well as of the issuing branch should be mentioned in the covering letter of the issuing branch. The letter may also include any web portal link, from where the Surety Bond can be confirmed by the Company.

(d) The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.

Job Name : Supply of FLP Lights, Fans & plug tops at NRL Site for RTA'27
NRL Tender No.: PUR1011567

**Annexure 16.2**

## Surety Bond For Contract Performance Security

(to be executed on Non-Judical Stamp Paper of appropriate value as per proforma below)

Ref..... Guarantee No.....

To,

**Chief General Manager (Commercial)**

Numaligarh Refinery Limited,

Pankagrant, PO: Numaligarh Refinery Project,

Dist-Golaghat (Assam), India, PIN-785699

Dear Sir (s),

In consideration of you, Numaligarh Refinery Limited, having its office at [122A, G.S. Road, Christianbasti Guwahati-781005] (hereinafter referred to as the "**NRL**", which expression shall unless it be repugnant to the subject or context thereof include its successors and assigns) having awarded the Contract to [***insert name of the Contractor***] having its registered office at [***insert address of the Contractor***] (hereinafter referred to as the "**Contractor**", which expression shall unless it be repugnant to the subject or context thereof include its/their executors, administrators, successors and assigns) in relation to [***insert Contract Name/Work Description***] pursuant to the Contract Agreement bearing Reference Number [***insert reference number***] (hereinafter collectively referred to as "**Contract Documents**"), we [***insert name of the Guarantor*** ] having our registered office at [***insert registered address of the Guarantor***] and one of its branches at [***insert relevant branch address of the Guarantor***] (hereinafter referred to as the "**Guarantor**", which expression shall include its successors and assigns), at the request of the Contractor, do hereby irrevocably, unconditionally, and without reservation guarantee the due and faithful performance, discharge, and compliance of all terms, conditions, and obligations under the Contract Documents by the said Contractor and unconditionally undertake to pay NRL forthwith on first demand without any demur, reservation, recourse, contest, protest, or proof of satisfaction or condition, and without reference to the Contractor, an amount of Rs. [***insert amount***] (hereinafter referred to as the "**Guarantee Amount**") as our primary obligation if the Contractor shall fail to perform, discharge, or comply with any of the terms, conditions, or obligations contained in the said Contract Documents.

NOW, THEREFORE, the Guarantor hereby unconditionally and irrevocably guarantees and affirms as follows:

1. This Performance Guarantee (hereinafter referred to as the "**Guarantee**") shall be a continuing guarantee and shall remain in full force and effect for all claims or demands made by the NRL on the Guarantor until the NRL discharges this Guarantee, subject however that the NRL shall have no claims under this Guarantee after [***insert time and date including at least 03 (three) months beyond the defect liability period, plus six months' claim period***] or any written extension(s) thereof.

2. In order to give full effect to this Guarantee, NRL shall be entitled to treat the Guarantor as the principal debtor. NRL shall have the fullest liberty without affecting in any way the liability of the Guarantor under this Guarantee from time to time to vary any of the terms and conditions contained in the said Contract Documents or to extend time for performance of the Contract or the validity period of the Performance Guarantee or the period for compliance with any obligations by the Contractor or to postpone for any time and from time to time any of the powers exercisable by it against the said Contractor and either to enforce or forbear from enforcing any of the terms and conditions contained in the said Contract Documents or the securities available to NRL, and the Guarantor shall not be released from its liability under these presents by any exercise by NRL of the liberty with reference to the matters aforesaid or by reason of time being given to the said Contractor or any other forbearance, act or omission on the part of NRL or any indulgence by NRL to the said Contractor or by

any change in the constitution of NRL or its absorption, merger or amalgamation with any other person or any other matter or thing whatsoever which under the law relating to Guarantee would but for this provision have the effect of releasing the Guarantor from its such liability.

3. It shall not be necessary for the NRL to proceed against the Contractor before proceeding against the Guarantor and the Guarantee herein contained shall be enforceable against the Guarantor as principal debtor notwithstanding the existence of any other undertaking or security for any indebtedness of the Contractor to the NRL and notwithstanding that any such security shall at the time when claim is made against the Guarantor or proceedings taken against the Guarantor hereunder, be outstanding or unrealized.

4. The amount stated by the NRL in any demand, claim or notice made with reference to this Guarantee shall as between the Guarantor and the NRL for the purpose of this Guarantee be final, conclusive and binding of the amount payable by the Guarantor to the NRL hereunder.

5. The liability of the Guarantor to the NRL under this Guarantee shall remain in full force and effect notwithstanding the existence of any difference or dispute between the Contractor and the NRL, the Contractor and the Guarantor and/or the Guarantor and the NRL or otherwise howsoever related to this Guarantee or the liability of the Contractor to the NRL, and notwithstanding the existence of any instructions or purported instructions by the Contractor or any other person to the Guarantor not to pay or for any cause withhold or defer payment to the NRL under this Guarantee, with the intent that notwithstanding the existing of such difference, dispute or instructions, the Guarantor shall be and remain liable to make payment to the NRL in terms thereof.

6. We, the Guarantor, further agree that NRL shall be the sole judge to decide as to whether the Contractor is in default of due and faithful fulfilment and compliance with the terms and conditions contained in the aforesaid Contract Documents and the decision of NRL that the Contractor is in default as aforesaid shall be final and binding on us, notwithstanding any differences between NRL and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority.

7. This Guarantee shall not be determined or affected by the liquidation or winding up or dissolution or change of constitution or insolvency of the Contractor or any change in the legal constitution of the Guarantor or the NRL.

8. Any notice by way of request, demand or otherwise hereunder shall be sufficiently given or made if addressed to the Guarantor and sent by courier or by registered mail or via email to the Guarantor at the address set forth herein.

9. We undertake to make the payment on receipt of your notice of claim on us addressed to name of Guarantor along with branch address and delivered at our above branch and/or via email to: [***insert email ID***] which shall be deemed to have been duly authorized to receive the said notice of claim.

10. We, the Guarantor, further undertake not to revoke this Guarantee during its currency except with the previous express consent of NRL in writing.

11. The Guarantor declares that it has power to issue this Guarantee and discharge the obligations contemplated herein, the undersigned is duly authorised and has full power to execute this Guarantee for and on behalf of the Guarantor.

12. This Guarantee issued by us is in full compliance with applicable laws of India, as amended from time to time.

13. This Guarantee is for the benefit of NRL and its successors and assigns. This Guarantee is binding not only on the Guarantor, but also on the Guarantor's successors and permitted assigns. The Guarantor shall not assign its rights and obligations hereunder to any person, insurer, company or other entity except as permitted by NRL in writing.

14. Notwithstanding anything herein:
    i. The Guarantor's liability under this Guarantee shall not exceed Rs. [***insert Guarantee Amount***];

ii. This Guarantee shall remain in force until [***insert***];

iii. This Guarantee shall have additional claim period of [***six***] months thereafter; and

iv. The Guarantor is liable to pay the Guarantee Amount or any part thereof under this Guarantee only if NRL serves upon the Guarantor a written claim or demand upon the Guarantor or any branch thereof on or before the aforesaid claim period.

Signed and sealed this [●] day of [●], [●] at [●].

**SIGNED, SEALED, AND DELIVERED**
For and on behalf of the Guarantor by:

(Signature)
(Name)
(Designation)
(Code Number)
(Address)

----------o----------o----------o----------o----------

**Annexure 18**

# NUMALIGARH REFINERY LIMITED
## General Purchase Conditions (Indigenous) - 2024
## (Effective from 09.09.2024)

**Definition:**

1. 'NRL'/'Owner' means 'Numaligarh Refinery Limited'

2. 'Vendor'/'Contractor' means a Person or Firm or Company, to whom the order is addressed, for supply of goods and/or services.

3. Banker: Unless otherwise specified, NRL's banker at Numaligarh shall be: State Bank of India, NR Complex, P.O. NR Project, Pin: 785699, Dist. Golaghat, Assam. Bank Code: 5377.

Unless otherwise specified, the following Terms & Conditions shall be applicable for supply of goods.

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| 1 | **Price Basis:** | Prices are to be quoted on FOR NRL Site, Numaligarh basis (or, FOR NRL Guwahati/New Delhi/Calcutta/Siliguri/Paradeep basis, as the case may be) showing break-up of taxes, duties, packing & forwarding, freight, third party inspection (if applicable) and transit insurance charges, (all in % age). |
| 1(A) | **OEM/Authorised Dealer/Agents of Supplier:** | When a bidder sends quotation for an item manufactured by some different company, the bidder is also required to attach, in its quotation, the manufacturer's authorisation certificate and also manufacturer's confirmation of extending the required warranty for that product as per formats given in RFQ/NIT. However, manufacturer's authorisation / confirmation may not be required for Commercially- Off-the-Shelf items, unless specifically mentioned in the RFQ/NIT.<br><br>In cases where the manufacturer has submitted the bid, the bids of its authorised dealer / distributor / channel partner will not be considered and EMD (if any) will be returned. And in case of violations, both infringing bids will be rejected. |
| 2 | **Firm Price:** | Quoted prices shall remain firm and fixed till complete execution of the order.<br><br>NRL is not liable for any claim from the supplier on account of fresh imposition and/or increase (including statutory increase) in excise duty, custom duty, GST, and any other tax, duty or other levy on raw materials and/or components used directly in the manufacture of the contracted goods taking place during the pendency of the contract, unless such liability is specifically agreed to in terms of the contract. |
| 2(A) | **Suo motu discounts and rebates after opening of the tender:** | If a bidder offers suo motu discounts and rebates after opening of the tender (techno-commercial or financial), such rebates/discounts shall not be considered for the purpose of ranking the offer but if such a firm does become L1 at its original offer, such suo motu rebates will be incorporated in the contracts by NRL. |
| 3 | **Payment Term:** | Unless otherwise specified/agreed, the payment term shall be "100% within 30 days of receipt and acceptance of goods at site subject to submission of Contract Performance Security (CPS) and Warranty Bank Guarantee (WBG), as applicable. |
| 4 | **Weights & Measurements:** | All weights and measurements recorded by NRL on receipt of materials shall be treated as final and binding.<br><br>Qty. Tolerance @±0.05% (up to 20 MT) and Tolerance @± 0.03% (beyond 20 MT) for weigh bridge scale variation (Class- III) shall be permissible. |
| 5 | **Qty. Tolerance:** | For items like Structural Steel, Plates, Tor Steel, Cement, Bulk Chemical 5% qty tolerance by weight and for Cable and Pipe materials 5% qty tolerance by length shall be permissible. Payment will be made on actuals within the tolerance limit. |
| 6 | **Transportation:** | Unless otherwise agreed upon, transportation of goods up to the specified destination shall be in Vendor's scope. |

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| | | The materials to be dispatched through a transporter registered as per Carriage by Road Act 2007 and Carriage by Road Rules 2011. The Consignment Note/ Lorry receipt must carry the registration number as per the rules stated in The Carriage by Road Rules, 2011.<br><br>Material shall be delivered in a truck/vehicle having valid documents like Vehicle Registration Certificate, Insurance Certificate, Pollution Under Control Certificate, Fitness Certificate. The vehicle shall not be overloaded and drivers shall have valid driving license.<br><br>E-way bill to be generated by vendor/vendor's nominated transporter for movement of goods/materials as per Rule 138 of the CGST Rules, 2017 issued by Central Board Of Indirect Taxes & Customs and any subsequent amendment thereafter. |
| 7 | **Despatch:** | Unless otherwise specified, all LR/RR etc. must be in the name of Numaligarh Refinery Limited and not 'Self'. Any demurrage or wharfage paid by NRL to the carriers due to consignments being booked as 'Self' will be recovered from the vendor. No consignment shall be booked on 'Said to Contain' basis. If so, it will be at vendor's own responsibility and risk. |
| 8 | **Packing, Marking, Shipping & Documentation:** | All consignments must be securely and appropriately packed and should conform to Standard Material Transport Regulations. The vendor will be held liable for any damages to the goods due to insufficient or defective packing as well as for corrosion due to insufficient protection.<br><br>Each package shall be clearly marked with indelible paint with the Purchase Order No., From (Name & Add.), To (Name & Add.), Destination, Item Net & Gross Weight, Case No. (Sl. No. of Total Cases) & Dimensions, and shall contain copies of despatch documents and packing list. Details given in the "Packing, Marking, Shipping and Documentation Specification. for Indigenous Materials" - wherever enclosed with a Purchase Order shall be strictly followed. For chemicals, MSDS should be a part of transportation documents (the document should specifically mention the conditions for material storage). In case the Chemical is hazardous in nature, it should be legibly recorded on the body of the Drum/ Can as applicable. |
| 9.1 A | **Test Certificate:** | Test certificate of representative samples conforming to PO specifications from the manufacturer/Govt. approved laboratory/NRL nominated agency must be furnished along with supplies.<br>In case of 3rd Party Inspection, the Inspection Reports must accompany all despatch documents as well as supplies.<br><br>Further, shelf-life certificate to be submitted if applicable for the items. |
| 9.1 B | **Shelf Life Certification:** | Shelf Life for Material / Chemicals / Consumables to be declared based on applicability of the same. A certificate to this effect should be submitted separately certified by competent authority. This is mandatory for all such procurements which become eligible under this broad head. |
| 10 | **Guarantee/ Warranty:** | 10.1. Materials shall be guaranteed against manufacturing defects, materials, workmanship and design for a period of 12 months from the date of commissioning or 18 months from the date of last dispatch whichever is earlier. Warranty for replacement of material/ accessories should be provided free of charges at our premises. The above guarantee/warranty will be without prejudice to the certificate of inspection or material receipt note issued by us in respect of the materials.<br>10.2. All the materials including components and sub-contracted items should be guaranteed by the vendor within the warranty period mentioned above. In the event of any defect in the material, the vendor will replace / repair the material at NRL's concerned location at vendor's risk and cost on due notice.<br>10.3. In case, vendor does not replace / repair the material on due notice, rejected material will be sent to the vendor on "Freight to pay" basis for free replacement. Material after rectification of defects shall be dispatched by the |

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| | | vendor on "Freight Paid" basis. Alternatively, NRL reserves the right to have the material repaired / replaced at the locations concerned, at the vendor's risk, cost and responsibility.<br>10.4. The Vendor shall provide similar warrantee on the parts, components, fittings, accessories etc. so repaired and / or replaced.<br>10.5. The replacement goods/services shall follow the same Quality Assurance Plan. |
| 11 | **Insurance Charges:** | 11.1 Transit insurance shall be in the scope of vendor where delivery basis requirement is 'FOR NRL Site'.<br>11.2 Only when specifically mentioned in enquiry that delivery basis requirement is 'Ex-works' and transportation by NRL; in those cases only Transit Insurance shall be in NRL's scope. In such instances, vendor shall intimate dispatch details and value of goods in advance over e-mail for transit insurance coverage. |
| 12 | **Bank Charges:** | Unless otherwise specified, in case of payment through bank, respective bank charges shall be to respective account. |
| 13 | **Offer Validity:** | The vendor's offer shall be valid for acceptance for a period of 90 days from the final due date of the enquiry.<br><br>In case the Tenderer revokes/cancels/varies/withdraws his tender within the above period, the OWNER shall have the right to forfeit the EMD, if any, without any further notice to the tenderer. In case of such revocation or cancellation or variation by the Tenderer, without the consent of the OWNER, the OWNER shall have the right to put the tenderer on holiday list, barring the tenderer from participating in any tender for future tenders. |
| 14 | **Taxes & Duties:** | All vendors shall have valid GST registration in the concerned State as applicable and vendor shall quote their GSTIN number in the quotation wherever required.<br><br>14. 1 **GST**:<br>14.1.1 GST extra as applicable at the time of delivery within scheduled delivery period will be payable by NRL against documentary evidence. Vendor shall mention in their offer, the percentage of GST applicable at present. Any upward variation in GST rates, beyond the contractual delivery period, shall be to vendor's account.<br>14.1.2 In case GST is not applicable at present: In case GST gets levied due to change in turnover of Vendor, shall be borne by the vendor. If GST becomes applicable due to change in the law in future, the same will be borne by vendor subject to 14.1.1. In case of change in stand of vendor about applicable rate of GST towards higher side, the same will not be payable.<br>14.1.3 Owner shall take Input Tax Credit of the GST paid on the material supplied for both GST and cess component as applicable and accordingly GST / Cess should be quoted separately wherever applicable.<br><br>Vendor shall ask the transporter of the goods to hand over the copy of GST invoice (transporter's copy) at the time of delivery of goods at owner's site.<br><br>The vendor shall take steps viz. mention relevant GSTIN of NRL in GST invoices and returns, uploading invoice in GSTR 1, payment of the tax liability on the said invoices and filing of Returns etc. and comply with all the requirements of applicable laws including GST laws for the time being in force to enable the OWNER to avail tax credit/s including input tax credit. Any loss or non-availability of input tax credit by the OWNER due to non-compliance of applicable tax law including but not limited to GST laws in force or otherwise, on the part of VENDOR, an amount equivalent to any tax liability accruing to the OWNER and/or to the extent of any loss accrued to the OWNER due to the non-availability of input tax credit or any liability accrued to the OWNER shall either stand cancelled or deducted from the payment due to the VENDOR or shall be reimbursed by the VENDOR as the case may be till such default |

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| | | is either rectified or made good by the VENDOR and the OWNER is satisfied that it is in a position to claim valid input tax credit within the timelines as per applicable laws. Any cost, liability, dues, penalty, fees, interest as the case may be which accrues to the OWNER at any point of time on account of non-compliance of applicable tax laws or rules or regulations thereof or otherwise due to default on the part of VENDOR shall be borne by the VENDOR.<br><br>An amount equivalent to such cost, liability, dues, penalty, fees, and interest as the case may be shall be reimbursed by the VENDOR within 30 days. Any GST as may be applicable on such recovery of amount shall also be borne by VENDOR and same shall be collected by the OWNER.<br><br>NRL's …… Range : Bokakhat<br>Division : Jorhat<br>Commissionerate : Dibrugarh PAN : AAACN6984B<br>GSTN :<br>18AAACN6984B1ZD (Assam)<br>19AAACN6984B1ZB (WB)<br>21AAACN6984B2ZP (Odisha)<br>07AAACN6984B1ZG (Delhi)<br>07AAACN6984B2ZF* (*Input Service Distributor Delhi) |
| 15 | **Delivery Period, Delayed Delivery & Liquidated Damages:** | 15.1 The time and date of Delivery of Material(s) as stipulated in the order shall be strictly adhered to on the clear understanding that the Price(s) of the Material(s) has/have been fixed with reference to the said Delivery date(s).<br><br>15.2 The inability of vendors to execute orders in accordance with the agreed/quoted delivery schedule will entitle NRL, at its options, to:<br><br>15.2.1 While granting extension of the delivery period, where the delivery of goods or any part thereof is accepted after expiry of the original delivery period, NRL may recover from the vendor, the LD a sum equivalent to 0.5% (half percent) per week or part thereof of delay. The total liquidated damages shall not exceed 5% (five percent) of the total value of the goods.<br><br>However, if delivery of goods (including installation & commissioning) in a staggered/splitable manner is possible and permissible, then, the LD imposed would be on the value of the portion of the delayed goods.<br><br>If the contract involves assembling/ integration/ commissioning of all the ordered goods to get the desired product/output, then, the LD imposed would be on the total order value of goods.<br><br>Compensation for loss on account of late delivery (actually incurred as well as notional) where loss is pre-estimated is termed as LD. There is no need to establish actual loss due to late delivery. Liquidated Damages (LD) for delay / late delivery shall convey the same meaning as Price reduction clause (PRC) for delay / late delivery.<br><br>Where any delay in delivery is due to default by the seller/contractor, any increase in statutory duties and/or upward rise in prices due to the price variation clause (PVC) and/or any adverse fluctuation in foreign exchange during the extended/delayed delivery period are to be borne by the seller/contractor. This will be over and above levy of LD/PRC. However, the purchaser reserves his right to get any benefit of a downward revisions in statutory duties, PVC and foreign exchange rate during the extended/delayed delivery period. Thus, PVC, other variations and foreign exchange clauses operate only during the original delivery period.<br><br>15.2.2 Cancel the order in part or full and purchase such cancelled quantities from elsewhere on account at the risk and cost of the vendor, without prejudice to its right under 15.2.1 above in respect of goods delivered. |

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| | | Note:<br>a) In case of package items (ordered as a complete system), the price reduction for delayed delivery shall be applicable on the entire order value of that package and not on the value of the undelivered portions (even though a billing breakup has been approved).<br><br>b) In case of purchase of bulk items where tolerance limit is specified (e.g. pipes, cables etc.), price reduction clause shall be applicable on the actual quantity supplied, within the tolerance limit, instead of Purchase Order quantity.<br><br>**Prior approval from NRL to be taken if the party plans to deliver the material in parts / partial shipment basis in case the same is not clearly mentioned as allowable in the Purchase Order.** |
| 16 | **Repeat Order:** | Repeat Order shall be acceptable to the vendor within 6 months from the date of the Basic Order at the same prices, terms & conditions as that in the Basic Order. |
| 17 | **Part Order:** | Part Order shall be acceptable to the vendor. However, the quantity mentioned in the enquiry documents for each item shall be ordered on one vendor. All applicable lumpsum charges, if any, shall be pro-rata on value basis. |
| 18 | **Changes in Terms & Conditions:** | NRL reserves the right to make changes at any time in quantities of items ordered or in specification and drawings. If such changes cause an increase or decrease in the amount due or in the delivery period, an equitable adjustment shall be made. Any claim for adjustment under this provision must be assessed within 10 days from the date when the changes are ordered by NRL. |
| 19 | **Right of Rejection:** | NRL reserves the unfettered right to reject any or all offers without assigning any reasons thereof. |
| 20 | **Settlement of Disputes:** | 20.1 **FOR SETTLEMENT OF DISPUTES BETWEEN COMPANY and THE PARTY, OTHER THAN CENTRAL PUBLIC SECTOR UNDERTAKINGS**<br><br>All disputes of difference whatsoever which shall at any time arise between the parties hereto touching or concerning the works or supply or the execution or maintenance thereof of this contract/supply or the rights touching or concerning the works or the execution effect thereof or to the rights or liabilities or the construction meaning , operation or effect thereof or to the rights or liabilities of the parties or arising out of or in relation thereto whether during or after completion of the Contract/supply or whether before or after determination, foreclosure or breach of the contract/supply ( other than those in respect of which the decision of any person is by the contract/supply expressed to be final and binding) shall be endeavoured to be amicably settled by the parties in the following manner:<br><br>a. At the first instance by the Engineer-In-Charge/ Purchase Officer<br><br>b. At the second instance by the Chief Executive of NRL (Presently Managing Director) or authorised representatives of Chief Executive of NRL.<br><br>c. Parties may opt for conciliation under Arbitration and Conciliation Act 1996 as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof.<br><br>d. In case party raising the dispute is not satisfied of the dispute by the aforesaid process and/or the dispute is not resolved by mutual agreement and put in writing within 3(Three) months or within such further period as may be mutually agreed from the date the dispute arose, the matter and/or dispute will be then referred to Arbitration and such disputes and/or difference will be resolved through Arbitration according to Arbitration clause mentioned herein below. |

e. However the option of amicably settling the dispute will be open at any time during and post arbitration or during pendency of any court proceeding, arising out of such Arbitration, and is pending before any Court or Tribunal or in any other judicial forum and/or before or after award, order, judgement etc. passed by arbitrator(s), court(s), tribunal(s) or any other judicial forum(s).

20.1.1 ARBITRATION CLAUSE:

i. Any dispute or difference of any nature whatsoever, any claim, cross-claim, counter-claim or set off of NRL (hereinafter Company) against the Contractor/Vendors or of the Contractor/Vendors against company or regarding any right, liability, act, omission on account of any of the parties hereto arising out of or in relation to this agreement shall be resolved through Arbitration under Arbitration and Conciliation Act 1996 as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re- enactment thereof.

ii. Reference to Arbitration shall be made by writing a letter to the Managing Director of the Company, with copy to the Contractor/Vendor or the company, as the case may be.

iii. On receipt of such letter referring the dispute to Arbitration, Managing Director or any other officer of the Company delegated by Managing Director shall, within 30 days from the receipt of the said letter, suggest to the parties the names of three persons, who are not disqualified to act as such Arbitrator under the Arbitration and Conciliation Act 1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re- enactment thereof for selection of one of them for appointment as a sole Arbitrator, to adjudicate the dispute(s) between the parties.

iv. If while referring the dispute to Arbitration the parties mutually agree that the Arbitration will be by a Tribunal consisting of three Arbitrators, then each party will nominate one person, who is not forbidden to act as Arbitrator and the two Arbitrators so nominated will select the third and Presiding Arbitrator to adjudicate the dispute.

v. Subject to the provisions of the Arbitration and Conciliation Act, 1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof, the Award of the Arbitrator or the Arbitrators, as the case may be, shall be final, conclusive and binding on both parties to the Agreement.

vi. The party(ies) against whom the Arbitration proceedings have been initiated, that is to say, the Respondents in the proceedings, shall be entitled to prefer a Cross-Claim, Counter-Claim or set off before the Arbitrator(s) in respect of any matter or issue arising out of or in relation to the Agreement without seeking a formal reference to Arbitration for such Counter-Claim, Cross Claim or set off and the Arbitrator(s) shall be entitled to consider and deal with the same as if the matters arising there from has/have been referred to him/them originally and deemed to form part of the reference made to Arbitration.

vii. Place of arbitration, unless otherwise mutually agreed by the parties, will be Numaligarh Or Guwahati.

viii. The parties hereby agree that, unless the Arbitration and Conciliation Act,1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof prohibits, the courts in the city of Golaghat or Guwahati shall have jurisdiction to entertain any application or other proceedings in respect of anything arising under this agreement and any award or awards made by the Sole Arbitrator(s) / Arbitral tribunal shall be filed in the concerned courts in the District Court of Golaghat or Kamrup Metro .

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| | | ix. Notwithstanding anything contained in the contract between the parties, the aforementioned clause nos. (i) to (viii) shall be applicable only in case where the value of dispute between the parties, including the claim, counter claim, or set off is less than Rs. 10 Crores, for contracts of domestic procurements.<br><br>x. In case of a value of the dispute is above Rs. 10 Crores for contracts of domestic procurements, the party shall have to approach the Managing Director, NRL for Mediation.<br><br>20.1.2 MEDIATION<br><br>I. Initiation of Mediation<br><br>For disputes valued above Rs. 10 Crores, the concerned party shall approach the Managing Director of NRL with their claim. Upon receiving such a request, the Managing Director shall refer the matter to a High-Level Committee (HLC) for mediation, where applicable.<br><br>II. High-Level Committee (HLC)<br><br>A High-Level Committee will be constituted by the MD of NRL, comprising a Chairman and two Members, following these guidelines:<br><br>a. Chairman<br>The Chairman will be selected from individuals of high integrity from the following categories:-<br><br>• Retired Civil Servant not below the rank of Joint Secretary.<br>• An officer who has served as an Independent External Monitor (IEM) at any Public Sector Undertakings (PSUs).<br>• Retired High Court or Supreme Court Judge.<br><br>b. Members<br>Members will be individuals who had superannuated from any Central Oil PSUs not below the rank of CGM.<br><br>III. Mediation Procedure<br><br>Mediation shall be conducted within the territorial jurisdiction of a court or tribunal competent to decide the subject matter of the dispute in accordance with the Mediation Act 2023. Mediation under this Act must be completed within one hundred and twenty days from the date fixed for the first appearance before the mediators.<br><br>IV. Post-Mediation Recourse<br><br>In the event of the failure of the mediation process, the parties retain the right to pursue appropriate legal recourse.<br><br>20.2 **FOR SETTLEMENT OF DISPUTES WITH Central PSUs / Government (except a dispute or difference concerning the Railways, Income Tax, Customs and Excise Duties)**<br><br>Appointment will be done as per Government guidelines / circulars, etc. prevailing at the time of reference of the disputes. |
| 21 | **Jurisdiction:** | All disputes, actions and proceedings arising out of this contract shall be under the jurisdiction of the courts in the city of Golaghat or Guwahati. |

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| 22 | **Acceptance of bid & Acknowledgement of Order:** | Upon acceptance of bid, a brief LOA (or GeM contract in case of GeM tenders) will be issued to the successful agency. If applicable as per tender / LOA / GeM contract, contract performance security (CPS), has to be submitted by the successful agency within the specified/allowed timeline. Upon submission of CPS by the agency, system generated detailed purchase order will be issued for the purpose of signing of contract. No bills will be processed until the CPS deposit, if applicable, is received by NRL.<br><br>Following standard clause will become part of the detailed contract:<br><br>QUOTE [ *Documents referred will be suitably removed / added / filled by NRL, as applicable* ]<br><br>"This Order ("*WO/PO/DLoA/FOA No. and date*") is issued pursuant to the Terms and Conditions mentioned in the RFQ/NIT (including, inter-alia, the General Purchase Conditions (GPC) 'and/or' the General Conditions of Contracts (GCC) including the clause for Arbitration therein; Special Purchase Conditions 'and/or' Special Conditions of Contract; Schedule of Rate (SOR); General Obligations, Specifications, Drawings, Plans, Time Schedule of Delivery/Completion); 'and/or' Terms and Conditions mutually agreed in writing thereafter 'and/or' outlined herein. Acknowledgement of this Order by [*Vendor's Name*] implies an agreement to adhere to these specified terms / documents, forming a binding contract between [*Vendor's Name*] (the Vendor/Contractor) and Numaligarh Refinery Limited (the Owner)."<br><br>[Sealed / Signed & Dated by – *NRL Signatory*]<br><br>[Sealed / Signed & Dated in acknowledgement by - *Vendor's Name*]<br>UNQUOTE<br><br>The vendor shall acknowledge receipt of the purchase order within 7 days of receipt. The vendor shall sign & seal (or digitally sign) the acknowledgement and return the same to NRL. |
| 23 | **Distribution of Documents:** | GST Invoices [03 sets in Original (duly seal and signed)/Digitally Signed Invoice] and other original despatch documents shall be sent to the following billing address:<br><br>NRL Bill Desk Administrative Building, Numaligarh<br>Refinery Limited<br>Pankagrant, P.O. Numaligarh Refinery Project (NRP) District: Golaghat, Assam, India.<br>Pin Code : 785699<br>E-mail: z_billdesk@nrl.co.in |
| 24 | **Conflict among other Terms and Conditions:** | In case of conflict between these General Terms & Conditions and any other special or typed conditions agreed to for a particular Purchase Order, the later shall prevail to the extent applicable. |
| 25 | **Non Assignment:** | The Purchase Order shall not be assigned by the vendor to any other party without prior written permission from NRL. |
| 26 | **Control Regulations:** | Vendor shall arrange for supply and despatch in strict conformity with the control regulations applicable and after obtaining permits, if any, under the regulations in force from time to time. |
| 27 | **Govt. Policy:** | The existing policy of the Government of India with regard to Purchase Preference to Public Sector Enterprises shall be applicable. |
| 28 | **Purchase Preference as per Govt. Policies:** | NRL reserves the right to provide purchase preference to bidders as per MSE/ PP-LC/Any other Govt. policy in place. |

29(A) **Contract Performance Security (CPS):**

To ensure due performance of the contract, contract performance security is to be deposited by the successful bidder awarded the contract [ CPS is also referred to as PBG or ePBG in GeM ].

The rate of Contract Performance Security shall be as follows, unless otherwise specified in the NIT/RFQ:

| **Type of Contract** | **Rate of CPS** |
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| Procurement of materials up to an individual contract value of Rs. 10 Lakhs. | Nil |
| Procurement of Spares and materials of proprietary nature from original manufacturer / the sole selling agent of OEM / authorized dealer of OEM/Proprietary vendor.<br>Supplies by Govt. Agencies or Institutions (Other than PSUs), Departments/Agencies/Autonomous Bodies under control of State/Central Government. | Nil |
| Procurement of materials including nomination, LSTK contract above an individual contract value of Rs. 10 Lakhs. | 3% of contract value |
| Materials for Plant Emergency / Emergency (Emergency to be declared by NRL). | Nil |
| Nomination supplies by PSUs. | Nil |
| Procurement of materials through ARC (Annual Rate Contract). [Annualized estimated contract value shall be considered in absence of a defined contract value. In case the contract period is 1 year or less the performance security shall be 3% of contract value.] | 3% of annualized/ estimated contract value |
| Procurement of materials with Staggered delivery. | 3% of contract value |

Note: -

1) For the purpose of determining the applicability and amount of Contract Performance Security, the contract / order value including delivery charges like packing, freight, insurance, TPI etc. and value of associated services like installation, commissioning, AMC etc. shall be considered unless otherwise specified in the RFQ/NIT. However, the order value excluding taxes and duties shall be considered for determining the amount of security/BG. For GeM contracts, applicability limits or value as ascertained by GeM policy shall be applicable.

2) Annualized contract value shall be total contract value [as defined in (1) above] divided by the number of years [provisional extension period, if any, and corresponding value, shall be excluded].

Contract Performance Security is to be furnished within 10 days from the date of notification of the award (LOA) and it should remain valid for a period of 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee / defect liability period (if any). The CPS may be deposited through online payment in an acceptable form to designated account of NRL or in the form of BG as per prescribed format for CPS [refer clause 40 below for further details].

The earnest money deposit (EMD), wherever applicable, of the contractor whose tender may be accepted, if paid in forms other than Bank Guarantee, can be converted to and adjusted with contract performance security for due performance of the contract, if the contractor so desires. In such case, the shortfall amount towards CPS (if any) may be deposited through online payment in an acceptable form to designated account of NRL or in the form of BG as per prescribed format of NRL (or GeM) for CPS.

Detailed contract shall be signed and entered into after receipt and verification of the requisite CPS, if applicable.

If the bidder, whose bid has been found to be the lowest evaluated bid withdraws or whose bid has been accepted fails to honour the procurement contract as may be required, or fails to provide the contract performance security within the time provided by NRL or otherwise withdraws from the procurement process or is found

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<tr><td></td><td></td><td>to have neglected / abandoned the order / LOA, the award may be terminated, the agency may be debarred as per holiday listing policy of NRL and his EMD/Bid security may be forfeited and other penal actions for breach of contract may be initiated, after serving a show cause notice.<br><br>The performance security will be forfeited and credited to the procuring entity's account in the event of a breach of contract by the contractor. It would be refunded to the contractor without interest, after he duly performs and completes all obligations under the contract including the warranty period.<br><br>Proforma of Bank Guarantee for Contract Performance Security is available in www.nrl.co.in (Tenders -> Download Manuals section).</td></tr>
<tr><td>29</td><td>Warranty Bank Guarantee (WBG):</td><td>In case of capital equipment goods, supplied materials shall be guaranteed against manufacturing defects arising from design, material, workmanship or any omission on part of the vendor/contractor for a period of 12 months from the date of commissioning or 18 months from the date of last dispatch whichever is earlier, unless otherwise specified in the RFQ/NIT.<br><br>For materials other than capital equipment goods, Guarantee/Warranty of the supplied goods shall be provided by the supplier/contractor where a condition for Guarantee/Warranty is specifically provided in the RFQ/NIT. The period of Guarantee/Warranty shall be as per clause 10 above or as mentioned in the Guarantee/Warranty clause of the RFQ/NIT.<br><br>In such cases, as specified above, a Warranty Bank Guarantee (in addition to CPS) is required to be submitted in the prescribed format, in the currency of the contract, valid for 03 (three) months beyond the Guarantee/Warranty period.<br><br>The rate of Warranty Bank Guarantee shall be as follows, unless otherwise specified in the NIT/RFQ:<br><br>
<table>
<tr><th>Type of Contract</th><th>Amount of Warranty Bank Guarantee</th></tr>
<tr><td>Procurement of materials up to an individual contract value of Rs. 10 Lakhs.</td><td>Nil</td></tr>
<tr><td>Procurement of Spares and materials of proprietary nature from original manufacturer / the sole selling agent of OEM / authorized dealer of OEM/Proprietary vendor.<br><br>Supplies by Govt. Agencies or Institutions (Other than PSUs), Departments/Agencies/Autonomous Bodies under control of State/Central Government.</td><td>Nil</td></tr>
<tr><td>Procurement of materials including nomination, LSTK contract above an individual contract value of Rs.10 Lakhs.</td><td>7% of contract value</td></tr>
<tr><td>Materials for Plant Emergency / Emergency</td><td>7% of contract value</td></tr>
<tr><td>Nomination supplies by PSUs.</td><td>7% of contract value</td></tr>
<tr><td>Procurement of materials through ARC (Annual Rate Contract).<br>[Annualized estimated contract value shall be considered in absence of a defined contract value. In case the contract period is 1 year or less the performance security shall</td><td>7% of annualized / estimated contract value</td></tr>
</table>
Note:-<br>1) For the purpose of determining the applicability and amount of Warranty Bank Guarantee, the contract / order value including delivery charges like packing, freight, insurance, TPI etc. and value of associated services like installation, commissioning, AMC etc. shall be considered unless otherwise specified in the RFQ/NIT. However, the order value excluding taxes and duties shall be considered for determining the amount of security/BG. For GeM contracts, value as ascertained by GeM policy shall be applicable.</td></tr>
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| | | 2) Annualized contract value shall be total contract value [as defined in (1) above] divided by the number of years [provisional extension period, if any, and corresponding value, shall be excluded].<br><br>Vendor shall submit the Warranty Bank Guarantee for amount of Seven percent (7%) of the contract value as with an unconditional BG, as per prescribed format of NRL, [refer clause 40 below for further details] "OR"<br><br>In cases, where WBG is applicable, it is normally permissible to allow Contract Performance Security to be valid upto 90 (ninety) days beyond delivery/ commissioning period; and the vendor may submit a fresh Warranty Bank Guarantee of 10 (ten) per cent of the value of the goods in the currency of the contract valid upto 90 (ninety) days beyond the Guarantee/Warranty period. In such cases, the performance guarantee will be returned only after satisfactory delivery/commissioning and receipt of the warranty bank guarantee.<br><br>Further, contractor may at his option submit a Contract Performance Security covering also the WBG value (where WBG is applicable), valid for a period of 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee / defect liability period (if any) – in which case, he will not be required to submit a BG for Warranty.<br><br>In case, WBG is not provided by the vendor, equivalent amount shall be kept on hold from his first payment [or subsequent payment(s), if insufficient from first payment] in lieu of Warranty Bank Guarantee.<br><br>All compensation or other sums of money payable by the contractor to the owner under terms of the contract may be deducted from or paid by the encashment of a sufficient part of his WBG (and CPS) or from any sums which may be due or may become due to the contractor by the owner. No interest shall be payable by the owner for the sum deposited as CPS or WBG. The CPS and/or WBG amounts will be refunded to the contractor without interest, after he duly performs and completes all obligations under the contract including the warranty period.<br><br>Proforma of Bank Guarantee for Indigenous Purchase (Warranty/Guarantee) is available at www.nrl.co.in in Tender Room section. |
| 30 | **Spare Parts:** | The vendor must furnish itemized and price list of spare parts required for two year's operation of equipment wherever applicable. The vendor shall provide the necessary cross sectional drawings to identify the spare parts numbers and their location as well as in interchangeability chart, wherever applicable. |
| 31 | **Force Majeure:** | A Force Majeure (FM) means extraordinary events or circumstance beyond human control such as an event described as:-<br><br>(i) An act of God: A natural calamity like flood, storm, drought, lightning, tidal wave, tsunami, cyclone other natural disaster; earthquakes, epidemics, plague, quarantine restrictions.<br><br>(ii) Or events such as a war, strike, riots, rebellion or sabotage, terrorism or acts of public enemy (including the acts of any independent unit or individual engaged in activities in furtherance of a programme of irregular warfare), acts of belligerence of foreign enemies (whether declared or undeclared), blockades, revolution, or insurrection, exercise of military or usurped power, or any attempt at usurpation of power; lockouts, crimes, hostility, civil commotion.<br><br>(iii) Unforeseen incidents such as fires, explosions, accidents, loss or breakage of major equipment or facilities, structural collapse, radioactive contamination or ionizing radiation; air crash, shipwreck, or train wreck.<br><br>(iv) Or events like expropriation of facilities by Government authorities, compliance with any order or request of any Governmental authorities, and freight embargoes |

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| | | FM does not include negligence or wrong-doing, predictable/seasonal rain and any other events specifically excluded in the clause.<br><br>A FM clause in the contract frees both parties from contractual liability or obligation when prevented by such events from fulfilling their obligations under the contract. An FM clause does not excuse a party's non-performance entirely, but only suspends it for the duration of the FM. The contractor has to give notice of FM within 14 days from the date of such event and it cannot be claimed ex-post facto. There may be a FM situation affecting the purchase organisation only. In such a situation, the purchase organisation is to communicate with the supplier along similar lines as above for further necessary action.<br><br>If the performance in whole or in part or any obligation under this contract is prevented or delayed by any reason of FM for a period exceeding 90 (ninety) days, either party may at its option terminate the contract without any financial repercussion on either side.<br><br>Any delays in or failure of the performance of either party hereto shall not constitute default hereunder or give rise to any claims for damages, if any, to the extent such delays or failure of performance is caused by force majeure.<br><br>Upon receipt of the intimation from the contractor of the happening of a FM event, the EIC shall within 10 days therefrom, determine as to whether such event is an FM event within the meaning of the FM clause and such decision of the EIC shall be final and binding upon the parties. In case EIC is not applicable in the contract, the decision of the HOD of Commercial Dept. shall be final and binding. |
| 32 | **Sales Conditions:** | On the issue of Purchase Order after process of tender, vendor waives and considers as cancelled any of his general sales conditions. |
| 33 | **New & Unused Materials:** | All the material supplied by the vendor shall be brand new, unused and of recent manufacture. |
| 34 | **Limitation of Liability:** | The aggregate liability of the Vendor to NRL under the Contract shall be total Contract Price/total Contract Value, except that this Clause shall not limit the liability of the Contract for following;<br><br>i. Any liability pursuant to vendor's breach of any Applicable Law; or<br>ii. Any loss resulting from fraud, intentional or willful misconduct or illegal or unlawful acts or gross negligence or omissions of vendor or its affiliates or any sub-vendor or any supplier or any of its or their respective officers, directors, employees, servants or agents or any other person acting on behalf of the Vendor; or<br>iii. Any liability to rectify, repair, restore or replace any materials and / or works or deficiencies therein in terms of the Contract; or<br>iv. In the event of any claim or loss or damage arising out of infringement of Intellectual Property.<br><br>Neither party shall be liable to the other party for any kind of indirect or consequential loss or damage including loss of use, loss of profit, loss of production or business interruption which is connected with any claim arising under the contract. |
| 35 | **Compliance of Regulations:** | Vendor warrants that all goods/Materials covered by this order have been produced, sold, dispatched, delivered and furnished in strict compliance with all applicable laws, regulations, labour agreement, working condition and technical codes and statutory requirements as applicable from time to time. The vendor shall ensure compliance with the above and shall indemnify owner against any actions, damages, costs and expenses of any failure to comply as aforesaid. |

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| 35 (A) | **Governing Law:** | Regardless of the place of contracting, place of performance or otherwise, this Agreement, and all amendments, modifications, alterations, or supplements, thereto shall be governed by the laws of India and respective state laws for the nature, validity and interpretation thereof. |
| 36 | **Integrity Pact:** | Vendors are requested to sign & return our pre-signed IP document, if applicable. This document is essential & binding. Vendor's failure to return the IP document duly signed along with Bid Document may result in the bid not being considered for further evaluation. |
| 36(A) | **Conflict of Interest among Bidders/ Agents:** | A bidder shall not have conflict of interest with other bidders. The bidders found to have a conflict of interest shall be disqualified. A bidder may be considered to have a conflict of interest with one or more parties in this bidding process, if:<br><br>a) they have controlling partner(s) in common; or<br>b) they receive or have received any direct or indirect subsidy/ financial stake from any of them; or<br>c) they have the same legal representative/agent for purposes of this bid; or<br>d) they have relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the bid of another Bidder; or<br>e) Bidder participates in more than one bid in this bidding process. Participation by a Bidder in more than one Bid will result in the disqualification of all bids in which the parties are involved. However, this does not limit the inclusion of the components/ sub-assembly/ Assemblies from one bidding manufacturer in more than one bid.<br>f) In cases of agents quoting in offshore procurements (GTE), on behalf of their principal manufacturers, one agent cannot represent two manufacturers or quote on their behalf in a particular tender enquiry. One manufacturer can also authorise only one agent/dealer. There can be only one bid from the following:<br><br>1. The principal manufacturer directly or through one Indian agent on his behalf; and [in case of receipt of bids from both the Indian agent & the principal, the **principal manufacturer** shall be approached to arrange for withdrawal of one of the bids; in case of non-withdrawal, the bid from the **principal manufacturer** shall be considered]<br><br>2. Indian/foreign agent on behalf of only one principal.<br>g) a Bidder or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the Bid;<br>h) In case of a holding company having more than one independently manufacturing units, or more than one unit having common business ownership/management, only one unit should quote. Similar restrictions would apply to closely related sister companies. Bidders must proactively declare such sister/ common business/ management units in same/ similar line of business.<br>i) However, restrictions under (a), (b), (c), (d) shall not be applicable against licensor recommended agents / suppliers and central/state PSUs.<br>j) Self-declaration from participating bidders w.r.t. not having any conflict of interest with other participating bidders shall be submitted with bids. In case any conflict of interest is found to have occurred, such bidders shall be informed to keep any one bid and withdraw the rest of the bids; In case of non-withdrawal, NRL shall disqualify all such bids with conflict of interest. |
| 37 | **Competitive Agreements/ Abuse of Dominant Position:** | The Competition Act, 2002 as amended by the Competition Amendment) Act 2007 (the Act), prohibits anti-competitive practices and aims at fostering competition and at protecting Indian markets against anti- competitive practices by enterprises. The Act prohibits anti-competitive agreements, abuse of dominant position by enterprises, and regulates combinations (consisting of acquisition, acquiring of control and M&A) wherever such agreements, abuse or combination causes, or is likely to cause, appreciable adverse effect on competition in markets in India.<br><br>NRL reserves the right to approach the Competition Commission established under |

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| | | the Act of Parliament and file information relating to anti-competitive agreements and abuse of dominant position. If such a situation arises, then Vendors are bound by the decision of the Competitive Commission and also subject to penalty and other provisions of the Competition Act. |
| 38 | **Policy on Holiday Listing:** | NRL's policy for holiday listing/ banning/ debarring of contractors/ suppliers, as prevailing on the date of issue of the show-cause notice, shall be applicable. For updated holiday listing policy, the NRL website www.nrl.co.in shall be referred. |
| 39 | **Right of Bidder to Question Rejection at Techno-Commercial Stage:** | The tenderer is to be permitted to send his representation in writing in case he feels that a proper procurement process is not being followed and/or his techno- commercial bid has been rejected wrongly. In case of techno-commercial rejection, such representation must be submitted within 48 hours from notification. Representation in case of GeM tenders must be submitted through the facility provided in GeM portal.<br><br>**Bidder's right to question rejection of his bid:-**<br><br>Only a directly affected bidder can represent in this regard:-<br>i) Only a bidder who has participated in the concerned procurement process (i.e., pre-qualification and bidding) can make such representation;<br>ii) In case pre-qualification bid has been evaluated before the bidding of technical/ financial bids (in 2 stage bidding process), an application for review in relation to the technical/ financial bid may be filed only by a bidder who has qualified in pre-qualification bid (1st stage);<br>iii) In case techno-commercial bid has been evaluated before the opening of the financial bid, an application for review in relation to the financial bid may be filed only by a bidder whose technical bid is found to be acceptable.<br>iv) However, following shall not be subject to review:<br>a) Determination of the need for procurement;<br>b) Selection of the mode of procurement or bidding system;<br>c) Choice of selection procedure;<br>d) Provisions limiting participation of bidders in the procurement process;<br>e) The decision to enter into negotiations with the L1 bidder;<br>f) Cancellation of the procurement process except where it is intended to subsequently re-tender the same requirements;<br>g) Issues related to ambiguity in contract terms may not be taken up after a contract has been signed, all such issues should be highlighted before consummation of the contract by the vendor/contractor; and<br>h) Complaints against specifications, except under the premise that they are either vague or too specific so as to limit competition. |
| 39(A) | **Confidentiality of Bid Evaluation Process:** | Information relating to the examination, clarification, evaluation and comparison of bids, and recommendations for the award of a contract, shall not be disclosed to bidders or any other person not officially concerned with such a process until the award to the successful bidder has been announced.<br><br>From the time of bid opening to the time of contract award, no bidder shall contact the Procuring Entity on any matter related to the bid, except on request and prior written permission.<br><br>Any effort by the bidder to influence the Procuring Entity in bid evaluation, bid comparison or contract award decisions will vitiate the process and will result in the rejection of the bidder's bid. |
| 40 | **Submission of CPS/WBG:** | **(a) Mode of submission of CPS / WBG:**<br><br>Performance security / WBG may be furnished in the form of bank guarantee (including e-Bank Guarantee) issued/confirmed from any of the commercial bank in India in the prescribed format of NRL or through online payment in an acceptable form to designated account of NRL (receipt/acknowledgement of the online transaction to be immediately submitted by bidder to NRL). The performance security shall be denominated in the currency of the contract. In case of GTE<br>tenders, the performance security should be in the same currency as the contract |

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| | | and must conform to Uniform Rules for Demand Guarantees (URDG 758) – an international convention regulating international securities.<br><br>The Bank Guarantee shall be issued from:<br><br>a) Any schedule Indian Bank or Any Branch of an International bank situated in India and registered with Reserve Bank of India as scheduled foreign bank in case of domestic bidder, or<br><br>b) In case of foreign bidder, the bank guarantee can be accepted from any scheduled bank in India or from International bank who has its branch in India registered with Reserve Bank of India, or<br><br>c) Any foreign Bank which is not a Scheduled Bank in India, provided the Bank Guarantee issued by such Bank is counter-guaranteed by any Branch situated in India of any Scheduled Bank incorporated in India.<br><br>d) Bank Guarantee issued by a Bank, amongst others, must contain the following particulars of such bank:<br><br>▪ Full address.<br>▪ Branch Code.<br>▪ Code Nos. of the authorized signatory with full name and designation. Phone<br>▪ Nos., Fax Nos., E-mail address.<br><br>e) The domestic bidders will have to submit the Bank Guarantee from any of the scheduled banks and on non-judicial stamp paper of requisite value as per the Indian Stamp Act, purchased in the name of the issuing banker.<br><br>f) The Bank Guarantee issued by the Bank must be routed through SFMS platform as per details provided in the format for BG.<br><br>g) The foreign bidder will submit the Bank Guarantee from Banks of Indian origin situated in their country. In case no such bank of Indian origin is situated in their country, the Bank Guarantee may be submitted from the bankers as specified above.<br><br>h) In case of GTE tenders, the performance security / warranty bank guarantee should be in the same currency as the contract and must conform to Uniform Rules.<br><br>**Note**: In case of GeM tenders the BG format, applicability limits and calculation for performance security as per GeM shall also be accepted.<br><br>**(b) Examination / verification of BGs:**<br><br>All bank guarantees received against a contract/order, shall be verified by NRL for the submitted format, order no., amount of the bank guarantee and name of the party on whose behalf it has been issued along with whether the following, as applicable:-<br><br>(i) The BG contains the name, designation and code number of the Bank officer(s) signing the guarantee(s).<br><br>(ii) The address and other details (including telephone no.) of the controlling officer of the bank are obtained from the branch of the bank issuing the BG (this should be included in all BGs).<br><br>In order to know the authenticity of the bank guarantee submitted by the bidder, NRL shall obtain Structured Financial Messaging Solutions (SFMS) confirmation (or written confirmation through letter for non-SFMS) from the designated bank of the Company. |

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| 41 | **Other Information w.r.t. Bank Guarantees:** | (a) e-Bank Guarantees are accepted by NRL. Detailed modality for submission of e- BGs shall be provided in the RFQ or respective proforma for BG or provided by NRL on request.<br><br>(b) For the following BGs, wherever applicable, the value of the BG shall be calculated as provided under:-<br><br>**(i) BG against Milestone Payment / RA Bill**: The value of the BG, if applicable, shall be equal to the amount of milestone payment(s), excluding any taxes and duties which are paid extra by NRL. GST component shall be paid based on GSTR2B updation by seller. [Unless otherwise specified in the RFQ.]<br><br>**(ii) BG against Advance Payment / Mobilization Advance**: The value of the BG, where applicable, shall be equal to 110% of the advance amount(s) including any GST/Taxes to be paid extra by NRL. [Advance Payment / Mobilization Advance is interest bearing and is not accepted by NRL, unless otherwise specifically provided for in the RFQ.] |

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